

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

July 8, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	19CV357522	<i>Le-Chi vu</i> <i>v.</i> <i>Daniel Duc Vu</i>	Hearing: Return of Warrant & Order of Examination Judgment Debtor Daniel Vu (“Vu”) was Ordered to appear in person in Department 16 on October 15, 2025 at 9:01 AM for an Examination where he was to give information regarding a money judgment against him. Because Daniel Vu violated the Court Order by failing to appear at the October 15, 2025 hearing for Examination, the Court issued a Civil Bench Warrant for Daniel Vu’s arrest in the amount of \$5,000.00. That \$5,000.00 Civil Bench Warrant was served on Daniel Vu on May 28, 2026, at which time he signed he written promise to appear in person for this Examination on July 8, 2026 at 9:01 AM in Department 16. Accordingly, Daniel Vu is ORDERED to appear in person for this Examination on July 8, 2026 at 9:01 AM in Department 16. If Judgment Debtor Daniel Vu does not appear as Ordered on July 8, 2026, at 9:01 AM in Department 16 and give information regarding a money judgment against him, then a new Civil Bench Warrant will issue against Daniel Vu with bail set at \$10,000.00. Specifically, if Judgment Debtor Daniel Vu does not appear then Plaintiff Le-Chi Vu is to prepare and file a Civil Bench Warrant against Daniel Vu with bail set at \$10,000.00 using Form CW-9002 that will be given to Judgment Creditor’s counsel by the D16 Courtroom Clerk. SO ORDERED.

9:01 2	21CV391414	<i>Satish Ramachandran</i> v. <i>City of Los Altos, et al.</i>	Hearing: Order of Examination Judgment Debtor Satish Ramachandran (“Ramachandran”) was Ordered to appear personally on April 29, 2026 at 9:01 AM in Department 16 for an Examination to give information regarding a money judgment against him (the “Examination”). When Ramachandran, along with his attorney Franklin L. Ferguson, Jr., did appear at the April 29, 2026 hearing, his attorney advised that Ramachandran has a hearing impairment and so requested that the Examination be continued so that Ramachandran could answer questions with the help of a Communication Access Realtime Translation (“CART”) machine. The Court granted Ramachandran’s ADA accommodation request by continuing the Examination to July 8, 2026, and by Ordering a CART Machine for the July 8, 2026 Examination. Minute Order (filed: Apr. 29, 2026)(“As Plaintiff has requested a CART machine, a CART machine will be provided at the 7-8-26 hearing <i>that will proceed as scheduled.</i>”)(emphasis added). Accordingly, Ramachandran is ORDERED (1) to appear on July 8, 2026 at 9:01 AM in Department 16 for this Examination, and (2) to answer questions at this Examination—with the help of the CART Machine he requested—regarding a money judgment against him. Ramachandran is put on NOTICE that if—after he specifically requested this Examination be continued to July 8, 2026 so that he could answer questions then with the help of a CART machine he requested—he violates this ORDER by failing to appear <i>or</i> by failing to answer questions at this Examination with the help of the CART Machine he requested, he will be subject to sanctions by the Court.
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			Speaking of sanctions, the Court has reviewed the Notice of Violations of Court Orders, filed by Defendant Judgment Creditor City of Los Altos on July 8, 2026, which alleges that Ramachandran has violated the Court's Orders of April 29, 2026 and May 11, 2026. The Court intends to discuss this issue with counsel during the July 8, 2026 hearing, and to set a hearing date and briefing schedule for the City's expected motion for additional attorneys' fees and sanctions against Ramachandran. Moreover, if Judgment Debtor Satish Ramachandran does not appear as Ordered on July 8, 2026 at 9:01 AM in Department 16, then a Civil Bench Warrant will issue against Satish Ramachandran with bail set at \$10,000.00. Specifically, if Judgment Debtor Satish Ramachandran does not appear then Judgment Creditor City of Los Altos is to prepare and file a Civil Bench Warrant against Satish Ramachandran Daniel Vu with bail set at \$10,000.00 using Form CW-9002 that will be given to Judgment Creditor's counsel by the D16 Courtroom Clerk. SO ORDERED.
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9:01 3	22CV395492	<i>Bayard v. Linda Arciaga, et al.</i>	Order on Petition for Approval of Compromise of Claim of Person with a Disability Before the Court is a Petition filed on June 11, 2026 by Alan Chapin (the “Petitioner”), who is the Guardian ad item of Bayard Chapin, a person with a disability, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Person with a Disability (the “June 11, 2026 Petition”). The June 11, 2026 Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of Bayard Chapin, a person with a disability. Accordingly, the June 11, 2026 Petition is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was prepared and filed with this Petition on June 11, 2026, specifically the Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Person with a Disability. SO ORDERED.
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9:01 4	21CV391414	<i>Satish Ramachandran</i> v. <i>City of Los Altos, et al.</i>	Hearing: Order To Show Cause In its May 20, 2026 Order, entitled “Order To Show Cause Why An Order For Sale Should Not Be Issued As To The Dwelling Described As To 889 Santa Rita Avenue, Los Altos, CA 94022” (the “May 20, 2026 OSC”), the Court, having considered the Application for Order for Sale of Dwelling filed by Defendant Judgment Creditor City of Los Altos (the “City”) on April 22, 2026 (“the Application”), the Court ORDERED Judgment Debtor Satish Ramachandran (“Ramachandran”) to appear on July 8, 2026 at 9:01 AM in Department 16 To Show Cause, if any, why the Application should not be granted and an order should not be issued for the sale of the real property commonly known as 889 Santa Rita Avenue, Los Altos, California 94022, APN: 167-18-060 (the “Property”). On May 28, 2026, the City filed Proof of Service on Ramachandran of (1) the Application, (2) the May 20, 2026 OSC, and (3) Notice of this July 8, 2026 Hearing. Ramachandran was properly served and has Notice of this July 8, 2026 Hearing. The City’s position is that as all statutory requirements of Code of Civil Procedure §§ 704.740 <i>et seq.</i> for the sale of a dwelling to enforce a money judgment have been met, the City is entitled to enforce its judgments in this case against the Property now. At the July 8, 2026 OSC Hearing, Ramachandran has the opportunity to be heard on why an Order for sale of the Property should not be made pursuant to the Application. After giving all parties the opportunity to be heard, the Court will decide whether to issue an Order for sale of the Property under Code of Civil Procedure § 704.780(b). SO ORDERED.
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9:01 5			
9:00 1	23CV413053	<i>Mary Volz</i> <i>v.</i> <i>R J Cassibba, et al.</i>	Order on Defendants’ Motion for Summary Judgment or, in the alternative, for Summary Adjudication <i>See</i> Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 2	23CV416999	<i>Vidushi Savant</i> <i>v.</i> <i>Vikas Kedia, et al.</i>	Order on: 1. Defendants’ Demurrer to Plaintiffs’ Second Amended Complaint & 2. Defendants’ Motion to Strike Plaintiff’s Second Amended Complaint <i>See</i> Line 2 below for complete tentative ruling on both the Demurrer and Motion to Strike. After the hearing, the Court will prepare and file the formal Order.

9:00 3	23CV416999	<i>Vidushi Savant</i> <i>v.</i> <i>Vikas Kedia, et al.</i>	Order on Defendants' Motion to Strike Plaintiff's Second Amended Complaint <i>See Line <u>2</u> below for complete tentative ruling on both the Demurrer and Motion to Strike.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 4	24CV432259	<i>Anna Aleman</i> <i>v.</i> <i>Amazon Logistics, Inc., et al.</i>	Order on Plaintiff's Motion to Compel Defendant R-C Interstate Corp. to produce further responses to Plaintiff's Form Interrogatories, Set One <i>See Line 4 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 5	24CV451521	<i>Elizabeth Dawkins</i> <i>v.</i> <i>Annabelle A. Alday, et al</i>	Order on Defendant's Motion to Compel Responses to Interrogatories, to Deem Requests for Admissions, Set One, Admitted, and for Sanctions <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 6	24CV452118	<i>Jane Doe</i> <i>v.</i> <i>Vivek Paul Gundotra, et al.</i>	Order on Defendant's Motion to Compel Plaintiff to Answer Deposition Questions <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV457216	<i>Jayanthi Rangarajan</i> <i>v.</i> <i>Sutter Law Firm PC, et al.</i>	Order on Defendant's Demurrer to Plaintiff's First Amended Complaint <i>See Line 7 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 8	26CV490000	<i>Kevin Ortega</i> <i>v.</i> <i>Kelly Services Global, LLC, et al.</i>	Order on Defendant's Motion to Compel Arbitration and Stay Civil Action <i>See Line 8 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 9	2000-7-CV-401591	<i>National Credit Acceptance, Inc.</i> <i>v.</i> <i>Philip Parlan Anima, et al.</i>	Order on Defendant's Motion to Vacate Judgment <i>See Line 9 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 10			

9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Mary Volz v. R J Cassibba, et al.*

Case No.: 23CV413053

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants R J Cassibba, Victoria L Cassibba, and R J and Victoria Cassibba Revocable Trust (“Defendants”) move for Summary Judgment or, in the alternative, Summary Adjudication in favor of Defendants and against Plaintiff Mary Volz (“Plaintiff”) on the grounds that there is no triable issue of material fact and Defendants are entitled to judgment as a matter of law. Notice of Motion (the “Motion”) at 1:26-2:4 (filed: Jan. 28, 2026). The Motion is made under Code of Civil Procedure Section 437c on the grounds that Defendants did not own, possess, or control the public sidewalk where Plaintiff alleges she fell, and Defendants had no actual or constructive notice of any alleged dangerous condition. *Id.* at 2:6-9. Plaintiff cannot establish the essential elements of her premises liability claim against Defendants. *Id.* at 2:9-10.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff brings this civil action against Defendants R.J. Cassibba, Victoria L. Cassibba, and the R.J. Cassibba and Victoria L. Cassibba Revocable Trust (collectively, “Defendants”).

On March 17, 2023, Plaintiff filed a complaint against Cassibba,¹ asserting claims for premises liability for negligence and dangerous condition of public property. Plaintiff alleged in her complaint that on May 4, 2022, she was walking northbound on the sidewalk of Church Street in Morgan Hill, California, when she tripped on a protruding segment sidewalk outside 90 E. Edmundson Avenue, causing her injuries of a broken nose and severe bruising on her face. (Complaint, p. 4.)

¹ Plaintiff’s complaint also named the City of Morgan Hill as a defendant and asserted a cause of action of general negligence against the City of Morgan Hill. On December 1, 2025, Plaintiff filed a request for dismissal with prejudice as to the City of Morgan Hill. Plaintiff is continuing the action against the remaining Defendants.

On January 28, 2026, Defendants filed this Motion under Code of Civil Procedure section 437c. Plaintiff filed an Opposition on June 16, 2026 (“Opposition”), and Defendants filed a Reply on June 26, 2026 (“Reply”).

Analysis of Motion

I. Legal Standard on Motion for Summary Judgment/Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

“A defendant seeking summary judgment must show that at least one element of the cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal quotation marks and citations omitted, emphasis added.) When a defendant moves for summary judgment, “its declarations and evidence must either establish a complete defense to plaintiff’s action or demonstrate the absence of an essential element of plaintiff’s case. If plaintiff does not counter with opposing declarations showing there are triable issues of fact with respect to that defense or an essential element of its case, the summary judgment must be granted.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81 (*Gray*).)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844, internal quotation marks omitted.) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

“Summary adjudication works the same way, except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint. (Code Civ. Proc. § 437c, subd. (f).) A summary adjudication is properly granted only if a motion therefore completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (§ 437c, subd. (f)(1).) Motions for summary adjudication proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.)

II. Premises Liability

Civil Code section 1714 subdivision (a) establishes that a land possessor is responsible for harm caused by his or her failure to exercise ordinary care in the management of his or her property. (Civ. Code, §1714, subd. (a).) “The proper test to be

applied to the liability of the possessor of land...is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others...[.]” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156, quoting *Rowland v. Christian* (1968) 69 Cal. 2d 108, 119, superseded by statute on other grounds as stated in *Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 187, fn. 6.)

“Under the common law, a landowner does not have any duty to repair abutting sidewalks along a public street, and does not owe any duty to pedestrians injured as a result of a defect in the sidewalks.” (*Jordan v. City of Sacramento* (2007) 148 Cal.App.4th 1487, 1490, citing *Schaefer v. Lenahan* (1944) 63 Cal. App. 2d 324, 326.) Street and Highways Code section 5610 “imposes a *duty of repair* on the abutting property owners for defects in sidewalks, regardless of who created the defects, but does not of itself create *tort liability* to injured pedestrians or a *duty to indemnify* municipalities, except where a property owner created the defect or exercised dominion or control over the abutting sidewalk.” (*Jordan v. City of Sacramento*, *supra*, 148 Cal.App.4th at p. 1490, emphasis in original.)

But a possessor of land may be liable for injuries caused by a defect in an adjacent public sidewalk where the landowner created the defect. (*Moeller v. Fleming* (1982) 136 Cal.App.3d 241, 245 [a trier of fact could find that the property owner’s tree created the uplifted sidewalk where plaintiff fell such that owner’s motion for summary judgment was denied].)

In determining a property owner’s liability for defects in a sidewalk, courts closely analyze the owner’s notice of the issue, historical care and control for the sidewalk, and specifically with respect to cases where a plaintiff alleged that a tree’s roots caused a sidewalk defect, the degree to which the owner planted, maintained, or exercised control over the offending tree, regardless of who formally owns the tree. (*Bean v. City of Thousand Oaks* (2025) 114 Cal.App.5th 775, 786 [no liability for owner who owned tree that may have caused sidewalk defect because city “exercised crucial element of control” over the tree due to undisputed evidence that the City had trimmed and inspected the tree and no evidence owner had maintained or controlled the tree], *Alpert v. Villa Romano Homeowners Assn.* (2000) 81 Cal.App.4th 1320, 1336-1337 [property owner who had actual notice of a sidewalk defect and planted and maintained all of the trees which caused the city-owned sidewalk to be uplifted was liable], *Jones v. Deeter* (1984) 152 Cal.App.3d 798, 805-806 [any dangerous condition in sidewalk caused by the trees was attributable to the city, not to the owners of the abutting property, because the city planted the trees and performed all necessary maintenance].)

In this Motion for Summary Judgment, Defendants argue that Defendants cannot be liable for Plaintiff’s injuries because:

- as parties do not dispute that the location where Plaintiff fell was a sidewalk owned by the City of Morgan Hill,
- Defendants had no actual or constructive notice of a dangerous condition in the sidewalk, and

- any duty to inspect, repair, or maintain the sidewalk lay solely with the City of Morgan Hill.

(Motion at 2:9-15.)

a. Cause of Sidewalk Defect

Defendants argue that to the extent a dangerous condition existed in the sidewalk, the City of Morgan Hill created that dangerous condition through its own shoddy repair work. (*Id.* at p. 8:18-19.) In support of this argument, Defendants point to Plaintiff's deposition testimony wherein she described tripping where asphalt met concrete, and asserts that this proves that Plaintiff fell "where the sidewalk ramping met the repair area." (Motion for Summary Judgment, p. 8:15-16.) Defendants further state that "[t]he photographs attached to Plaintiff's deposition show this transition area created by the City's repair work." (*Id.* at p. 8:16-17.)

After carefully reviewing Defendants' argument and evidence, the Court rules that Defendants fail to meet the burden to show the nonexistence of a triable issue of material fact because a reasonable fact finder could find that a tree owned by Defendants created the defect in the sidewalk such that tort liability would attach. Parties do not dispute that Plaintiff caught her right big toe on an area where asphalt met concrete on the sidewalk. But this alone does not establish that only the City of Morgan Hill's repair work could have caused the sidewalk defect: it does not follow that asphalt meeting concrete is *prima facie* evidence of a repair effort, let alone that the City of Morgan Hill did that repair effort, or that the repair effort was "shoddy." Notably, Defendants' Separate Statement makes no mention of any repair effort by the City. (See *Parsons v. Estenson Logistics, LLC* (2022) 86 Cal.App.5th 1260, 1265, fn. 5 (*Parsons*) [if it is not set forth in the separate statement, it does not exist].)

Defendants also argue that photographs attached to Plaintiff's deposition show the City's repair work. Defendants submit the Declaration of Claudia Lozano in Support of Motion for Summary Judgment ("Lozano Decl."). Excerpts of the transcript of the deposition of Plaintiff are attached to the declaration, (Lozano Decl., Ex. A.) but Exhibit A does not include any photos attached to Plaintiff's deposition. Defendants' evidence does not support the position that only the City of Morgan Hill could have caused the dangerous condition by repairing the sidewalk, and Defendants do not present any other evidence to support the position that Defendants could not have been responsible for the defect in the sidewalk.

In sharp contrast, Plaintiff's documents show the existence of a triable issue of material fact. Plaintiff argues in opposition that Defendants own one of two trees adjacent to the sidewalk where Plaintiff fell, and that the tree owned by Defendants could have created a dangerous condition in the sidewalk such that Defendants would be liable to Plaintiff. (Opposition, p. 4:7-28.) Plaintiff submits the Declaration of Mary Volz in Support of Plaintiff's Opposition to Defendants' Motion for Summary Judgment ("Volz Decl."), in which Plaintiff Volz states the following: "At approximately 9:00 p.m. on May 4, 2022, I tripped and fell as I was walking on the Church Street sidewalk near East

Edmundson Avenue in Morgan Hill. The defect over which I tripped was a sidewalk offset caused by tree roots growing under the sidewalk.” (Volz Decl., ¶ 3.) The Volz Declaration also states that Exhibit 1 to the declaration are “true and correct copies of two photographs that my daughter took on or about May 6, 2022, depicting the incident location.” (Volz Decl., Ex. 1.)



This photograph from Exhibit 1 is an image of a sidewalk with one tree on each side of a height differential in the sidewalk. A building is visible in the upper right third of photo. There is a tree between the building and the sidewalk and another tree is visible in the foreground of the image on the side of the sidewalk opposite from the building, closer to the street. The portion of the sidewalk visible in the left quadrant of the image is at a lower elevation than the portion of the sidewalk on the right quadrant of the image. Where the two differently elevated portions of sidewalk meet, there is a gap in the sidewalk and a strip of asphalt in that gap.

In reply, Defendants argue that “the exhibits that Plaintiff attaches to her declaration are hearsay and should not be considered. Exhibit 1 is a photograph not taken by Plaintiff and being offered to explain the location of her fall. Plaintiff already testified regarding where she fell. The location is not in dispute.” (Reply, p. 4:5-8.) But Exhibit 1 is not being offered to explain the location of Plaintiff’s fall, but rather to show that there are triable issues of material fact as to the extent to which the adjacent trees caused the dangerous condition of the sidewalk at the location where Plaintiff fell. (Opposition, p. 4:7-28.) Accordingly, the Court rejects Defendants’ argument and finds that this photograph does raise triable issues of material facts.

In the Declaration of Keri Russell in Support of Plaintiff’s Opposition to Defendants’ Motion for Summary Judgment (“Russell Decl.”), the Maintenance Manager for the City of Morgan Hill Public Services Department states that “[a]t 90 E. Edmundson Avenue the City of Morgan Hill owns and maintains park strip trees located between the

street and the sidewalk. Any tree located on the other side of the sidewalk is not owned by the City and is on private property.” (Russell Decl., ¶¶ 1, 2.)

Plaintiff has thus presented evidence that there is a tree on either side of the location where Plaintiff fell, the City of Morgan Hill denies owning and maintaining one of those trees and contends that the tree belongs to the property owner, and that this tree may have caused the dangerous condition in the sidewalk where Plaintiff fell. Plaintiff has thus established that there is a triable issue of material fact as to whether a tree created the defect in the sidewalk and whether Defendants maintained and controlled that tree such that Defendants could be liable to Plaintiff.

Plaintiff also asserts the existence of another disputed fact with respect to the ownership of one of the trees, claiming that Defendants deny owning the tree and that Defendants have claimed that the City of Morgan Hill owns both trees. (Opposition, p. 4:7-28.) Plaintiff’s evidence to support this assertion is Exhibit 3 to the Declaration of Louis S. Abronson in Support of Plaintiff’s Opposition to Motion for Summary Judgment (“Abronson Decl.”), which declarant states are “true and correct excerpts from R.J. Cassibba’s responses to Form Interrogatories, Set Two. Portions of the document have been highlighted for ease of reference. (The responses from Victoria Cassibba and the R J and Victoria Cassibba Revocable Trust were identical.)” (Abronson Decl., Ex. 3.)

In Exhibit 3, among the highlighted portions are: “Responding party owned the land on which TREE #2 was located at the time of the incident. Responding party did not own TREE #2...Responding party owned the land on which TREE #2 was located at the time of the incident. Responding party did not own TREE #2. The City of Morgan Hill owned and controlled TREE #2.” (*Ibid.*) The Court was not provided with a means of ascertaining what Defendants were referring to as “TREE #2” and as such cannot determine if Defendants deny ownership of one or both of the trees such that ownership of the trees is a disputed fact. While Plaintiff’s Opposition includes a photo wherein the tree on the side of the property is labeled “Tree #2” and the tree in between the sidewalk and the public street is labeled “Tree #1” (Opposition, p. 4:13-22.), the Court was not provided with the Form Interrogatories that Plaintiff sent to Defendants and thus cannot conclude that Defendants were referring to the same “Tree #1” and “Tree #2” as Plaintiff was referring to in her opposition papers.

Nevertheless, the City of Morgan Hill denies ownership and control over one of the trees that may have caused the defect in the sidewalk and that tree is located on Defendants’ property. Thus, there is a triable issue of material fact as to ownership of the tree on Defendants’ property. Defendants have not established that any particular tree or the prior repair by the City caused the defect in the sidewalk. Accordingly, Defendants have not established that the tree on their property did not cause the defect in the sidewalk.

The cause of the dangerous condition at the location where Plaintiff fell, and Defendants’ potential liability in creating that dangerous condition, raise disputes of fact—rendering Summary Judgment inappropriate. Accordingly, Defendants’ Motion for Summary Judgment is **DENIED**.

b. Actual or Constructive Notice

Defendants argue that they cannot be held liable for Plaintiff's injuries in the absence of actual or constructive notice. (Motion for Summary Judgment, p. 7:13-14.) But where a plaintiff presents evidence from which a reasonable inference could be drawn that the dangerous condition on the premises was created by the defendant, knowledge of the condition is imputed to the defendant. (*Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385.) Here, Plaintiff presented evidence from which a reasonable inference could be drawn that a tree owned by Defendants caused the sidewalk defect and thus knowledge of the condition is imputed to Defendants such that evidence of actual or constructive notice is *not* required. (Volz Decl., ¶ 3 [Plaintiff states she fell on a sidewalk offset caused by tree roots growing under the sidewalk]; Volz Decl., Ex. 1 [photo described above showing that there was one tree on either side of the sidewalk where Plaintiff fell]; Russell Decl. ¶ 2 [City of Morgan Hill states that one of the trees is not owned by the City].)

Moreover, Defendants do not meet the first-step burden with respect to this element. Defendants' undisputed material facts indicate only that Plaintiff herself did not inform Defendants of the defect in the sidewalk. (See Defendants' Separate Statement, Undisputed Material Fact ("UMF") No. 11.) But it is also undisputed that Plaintiff did not recall ever previously walking in the specific area where she tripped. (*Id.* at UMF No. 14.) Thus, Defendants have not shown that they did not learn of the defect from another source. (See *Parsons, supra*, 86 Cal.App.5th at p. 1265, fn. 5 [if it is not set forth in the separate statement, it does not exist].) Hence, the Court cannot sustain Defendants' Motion for Summary Judgment on the basis that Defendants demonstrated lack of actual or constructive notice of a sidewalk defect.

c. Duty to Inspect, Repair, or Maintain

Defendants also argue that they had no duty to inspect, repair, or maintain the sidewalk and thus cannot be liable for Plaintiff's injuries. (Motion for Summary Judgment, p. 7:17-20.) But Plaintiff argues *not* that Defendants had a duty to inspect, repair, or maintain the sidewalk where Plaintiff fell, but rather that Defendants had a duty to use reasonable care in the management of their own property to avoid creating a dangerous condition in the adjacent sidewalk. (Opposition, p. 6:15-16.) As discussed above, there remains a triable issue of material fact as to whether a tree on Defendants' property could have caused the sidewalk defect. Thus, Defendants' argument about the duty to inspect, repair, or maintain the sidewalk is not a defense to Plaintiff's action or a demonstration of the absence of an essential element of Plaintiff's case. (*Gray, supra*, 209 Cal.App.3d at p. 81.) The Motion for Summary Judgment cannot be granted on this ground.

d. Motion for Summary Adjudication

In the alternative, Defendants also request Summary Adjudication. (Motion for Summary Judgment, p. 2:2-3.) **But** Defendants make no specific arguments at all in support of Summary Adjudication, let alone regarding any specific Cause of Action. So

Defendants have forfeited any arguments they might have had for Summary Adjudication. (See *WFG National Title Ins. Co. v. Wells Fargo Bank, N.A.* (2020) 51 Cal.App.5th 881, 895 [arguments unsupported by legal analysis or record citations are deemed forfeited].)

To the extent that in the alternative the Motion sought Summary Adjudication, the Motion for Summary Adjudication is **DENIED**.

Conclusion & Order

Accordingly, Defendants' Motion for Summary Judgment or Summary Adjudication is **DENIED**.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Vidushi Savant v. Vikas Kedia, et al.*

Case No.: 23CV416999

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., Banshi, Inc., and Vikas Kedia (“Defendants”) demurs to the Second Amended Complaint (“SAC”) of Plaintiff Vidushi Savant (“Plaintiff”) as follows:

1. Defendant Vikas Kedia (“Kedia”) demurs under Code of Civil Procedure Sections 339 and 430.10(e) to the Fifth Cause of Action for Breach of Contract under *Marvin v. Marvin* on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendant Kedia and the claim is barred by the statutes of limitations.
2. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., Banshi, Inc., and Vikas Kedia demur under Code of Civil Procedure Section 430.10(e) to the Seventh Cause of Action for Civil Conspiracy to Commit Fraud on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.
3. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Banshi, Inc., demur under Code of Civil Procedure Section 430.10(e) to the Sixth Cause of Action for Fraudulent Concealment on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.
4. Defendant Vikas Kedia demurs under Code of Civil Procedure Section 430.10(e) to the Eighth Cause of Action for Declaratory Relief Re: Validity of the RISTC Trust on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendant Kedia.
5. Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Banshi, Inc., demur under Code of Civil Procedure Section 430.10(e) to the Ninth Cause of Action for Constructive Trust on the basis that Plaintiff fails to allege facts sufficient to state a cause of action against Defendants.

Notice of Demurrer (the “Demurrer”) at 2:5-3:12 (filed: Dec. 8, 2025).

In addition, Defendants move to strike the SAC as follows:

1. The entire SAC.
2. The Fifth Cause of Action for Breach of Contract under *Marvin v. Marvin* (SAC, ¶¶ 53-56, pp. 19:13-20:8).

3. The Seventh Cause of Action for Civil Conspiracy to Commit Fraud (by Concealment) (SAC, ¶¶63-66, pp. 21:10-27).
4. The Eighth Cause of Action for Declaratory Relief Re: Validity of the RISTC Trust (SAC, ¶¶ 67-75, pp. 22:3-23:18).
5. “2. Enforcement of Marvin Agreement ¶ a. Damages for Breach of Agreement; and ¶ b. Imposition of Constructive Trust on All Assets Fraudulently Transferred[.]” (SAC, Prayer, ¶ 2, p. 24:23-25).
6. “Declaratory Relief ¶ For a declaration of validity of the RISTC Trust[.]” (SAC, Prayer, ¶ 3, p. 24:26-27).

Notice of Motion to Strike (the “Motion to Strike”) at 2:5-20 (filed: Dec. 8, 2025).

Defendant’s Motion to Strike is brought on the grounds that the above matter is improper and is not drawn in conformity with California law, including but not limited to Code of Civil Procedure Sections 339, 436, 472, 472a, and relevant case law. Motion to Strike at 2:21-23. Specifically, Plaintiff’s SAC is untimely and exceeds the scope of leave to amend as set forth in the Court’s previous ruling. *Id.* at 2:23-24. The SAC also seeks recovery of damages arising from a time-barred claim based on breach of an implied contract that is deficiently pleaded. *Id.* at 2:24-26.

The Demurrer and Motion to Strike came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules in this Order on Demurrer and Motion to Strike as follows.

I. Factual Allegations of the SAC

In September 2009, Plaintiff and Kedia began cohabitating and later married in India on December 15, 2010, in accordance with Hindu religious traditions. On July 5, 2013, Kedia and Plaintiff entered into a civil marriage in the United States. The family court determined that the official date of marriage was July 5, 2013, a decision that was affirmed on appeal. The parties did not have any pre-nuptial agreement. They separated in 2019, and the court dissolved the marriage on May 2, 2024. The parties have one minor child together. (SAC ¶ 26.)

During their marriage four properties were purchased that are at issue here: the Portola residential property at 211 Portola Court in Los Altos, the Covington residential property at 355 Covington Road in Los Altos, the El Camino commercial property at 4966 El Camino Real #223-226 in Los Altos, and the Fifth Avenue commercial property at 112-120 Fifth Avenue in Redwood City. (SAC ¶ 23)

Kedia allegedly siphoned community property income away from Plaintiff’s view and consolidated under his sole, direct or indirect, control assets that should have been owned by and under control of the community, by placing those assets within entities

created by him or at his instruction to be owned by persons loyal to him such as his parents or relatives. Kedia repeatedly told Plaintiff that the Properties were community property and that the shell entities were created solely for tax and liability purposes. (SAC ¶¶ 27-29, 32)

While not an attorney, Kedia established the Oak View Law Group ("OVLG") as its sole incorporator and officer. Through OVLG, Kedia directed creation of the shell entities CIS, STAMP, and BANSI that hold title to the properties at issue. Kedia also controlled the RISTC Trust for which OVLG is the trustee. The SAC alleges that the RISTC Trust was formed to misappropriate and convert community assets and assets acquired while the parties were living together. (SAC ¶¶ 9, 10, 28)

On September 5, 2025, a jury convicted OVLG of ten felony counts of unauthorized use of personal identifying information and two misdemeanor counts for unauthorized practice of law and false advertising. As a co-defendant, Kedia was granted mental health diversion and the charges against him were dismissed on May 21, 2025, upon completion of his mental health treatment. Kedia's wrongful and fraudulent conduct as alleged in the SAC is consistent with his conduct as alleged in the criminal proceeding. (SAC ¶¶ 2, 3, 4)

Plaintiff initiated this action on May 30, 2023, and amended her complaint on January 24, 2025, and November 6, 2025. The operative SAC alleges causes of action for

1. First Cause of Action: Quiet Title As To Portola Property
2. Second Cause of Action: Quiet Title as to Covington Property
3. Third Cause of Action: Quiet Title as to El Camino Real Property
4. Fourth Cause of Action: Quiet Title as to Fifth Avenue Property
5. Fifth Cause of Action: Breach of Contract under *Marvin v. Marvin*
6. Sixth Cause of Action: Fraudulent Concealment
7. Seventh Cause of Action: Civil Conspiracy to Commit Fraud by Concealment
8. Eight Cause of Action: Declaratory Relief Re Validity of the RISTC Trust
9. Ninth Cause of Action: Constructive Trust.

SAC at ¶¶ 40-79 (filed: Nov. 6, 2025).

II. Legal Standards

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state

sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even if a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof....” (Code Civ. Proc. § 435.) “The court may, upon a motion made under Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. Judicial Notice

Plaintiff seeks Judicial Notice of the following:

- Exhibit A - Court’s Minute Order dated September 19, 2025;
- Exhibit B - The Felony Complaint filed by the District Attorney *People v. Oak View Law Group*, Santa Clara County Superior Court Case No. C2003831;
- Exhibit C - The Reporter’s transcript of the proceedings dated March 19, 2024, in *People v. OVLG*;
- Exhibit D - The District Attorney’s trial brief in *People v. OVLG* action, filed on August 4, 2025;
- Exhibit E - Excerpts from the trial proceedings in *People v. OVLG*;

- Exhibit F - The reporter's transcript of District Attorney's closing argument in *People v. OVLG*;
- Exhibit G – The Minute Order in *People v. OVLG* recording the Jury Verdict dated September 5, 2025.

Plaintiff's request for Judicial Notice is **GRANTED IN PART** as follows. Under Evidence Code §§ 452 and 453, the Court may take Judicial Notice of the *existence* of judicial opinions and court documents including the results reached in those documents, e.g., in orders, statements of decision, and judgments, *but* cannot take judicial notice of the truth of hearsay statements in decision or court files, including pleadings, testimony, or statements of fact. (See, *Williams v. Wraxall* (1995) 33 Cal. App. 4th 120, 130, fn. 7, citing *Gilmore v. Superior Court* (1991) 230 Cal. App. 3d 416, 418.). Accordingly, the Court takes Judicial Notice of the existence of Exhibits A-G and the results reached therein.

IV. Analysis of the Demurrer

A. The Demurrer to the Fifth Cause of Action Against Kedia for Breach of Contract is Overruled.

Defendant Kedia demurs to the Fifth Cause of Action arguing that (1) the claim is time-barred since the applicable statute of limitation expired on July 4, 2015, two-years after the parties ceased cohabitating; and (2) Plaintiff fails to allege specific terms of the alleged oral agreement or specific damages she claims to have suffered. Kedia emphasizes that under *Marvin v. Marvin* (1976) 18 Cal.3d 660, the implied agreement to equally share property existed only during the parties' cohabitation from September 2009 through July 4, 2013. (Motion at 7:21-8:19)

In Opposition, argues that (1) her SAC adequately pleads facts for all elements of breach of contract under *Marvin*, (2) the discovery rule and the continuing violation doctrine delayed accrual of the statute of limitation, (3) Kedia is equitably estopped from invoking the statute of limitation when he actively prevented discovery of his breach, and (4) the SAC does not affirmatively establish untimeliness. (Opposition at 11:15-13:11).

The Court agrees with Plaintiff.

First, the necessary elements of a breach of contract cause of action are: (1) the existence of the contract; (2) the Plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) resulting damage. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.) "An oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words." (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.)

The SAC alleges that between September 2009 and July 4, 2013, Plaintiff and Kedia were an unmarried cohabitating couple who implicitly agreed to pool earnings, share property equally, hold property jointly, and treat income, assets, and properties as community property. These allegations identify the essential terms: equal sharing of

property acquired during cohabitation. The SAC further alleges Plaintiff's performance: supporting Kedia in creating income-generating software and websites, serving as HR manager of GRMTech, and contributing to the household. Breach is alleged through Kedia's diversion of assets into shell entities and denial of Plaintiff's ownership interest. Damages are alleged through deprivation of Plaintiff's share of the Properties and income from community businesses. (SAC ¶¶ 26, 27-38, 54) These allegations sufficiently *plead* the necessary elements of a breach of contract cause of action.

Second, *Marvin* stands for the proposition that basic contracting principles apply equally to unmarried, cohabitating couples, and California will enforce agreements between such parties so long as they comply with the standard principles of contract formation and rest on lawful consideration. Like most contractual relationships, *Marvin* agreements “may be express or implied.” (*Marvin, supra*, 18 Cal.3d 660, 686, fn.16.) In other words, the law of contract, not the Family Code, governs cohabitation arrangements that do not qualify as putative marriages. As such, actions to enforce oral cohabitation agreements must be filed within two years of the breach. (See Code. Civ. Proc. § 339(1).)

Kedia's untimeliness argument fails for several reasons. Plaintiff has alleged sufficient facts establishing the requirements for delayed accrual under the discovery rule, which applies when the Defendant not only breached the contract in secret but also Defendant's act constituting the breach prevented Plaintiff from discovering it. (See, *Gryczman v. 4550 Pico Partners, Ltd.*, (2003) 107 Cal. App. 4th 1, 5-6) Plaintiff here has also alleged ongoing acts of breach, including transfer of the Covington Property to WAGONFLOW in July 2023. Each act of continued retention and concealment constitutes a new breach of the agreement that triggers its own limitation period. (See, *Eloquence Corp. v. Home Consignment Ctr.*, (2020) 49 Cal. App. 5th 655, 661)

Last but not least, the SAC does not affirmatively show that the claim is untimely. A demurrer based on the ground of statute of limitations at the pleading stage will be sustained *only* where the dates in the SAC *on its face* demonstrate that the cause of action is barred by the applicable statute of limitations. (See, *Vaca v. Wachovia Mortg. Corp.* (2011) 198 Cal.App.4th 737, 746.). And as the SAC does not on its face show that it is barred by the applicable statute of limitations, Kedia demurer on this ground is **OVERRULED** at the pleading stage.

For all those reasons, Defendant's Demurrer to Plaintiff's Fifth Cause of Action for Breach of Contract is **OVERRULED**.

B. The Demurrer to the Sixth Cause of Action Against All Defendants for Fraudulent Concealment is Overruled.

The elements of fraudulent concealment are that: (1) defendant concealed or suppressed a material fact; (2) defendant was under a duty to disclose the fact to plaintiff; (3) defendant intentionally concealed or suppressed the fact with intent to defraud; (4) plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed fact; and (5) as a result, plaintiff sustained damage. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) While fraud must be pled with

particularity, the standard is relaxed where, as here, it appears from the nature of allegations that the defendant must necessarily possess full information concerning the facts that defendant *concealed*. (*Alfaro v. Community Housing Improvement System & Planning Assn, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

Defendants CIS, Inc., Wagonflow, LLC, Stamp, Inc., and Bansi, Inc., (the “Entity Defendants”) demur to this cause of action arguing that Plaintiff fails to allege specific facts establishing (1) how Kedia misappropriated community assets, (2) when Kedia and CIS admitted to CIS’ ownership of the Portola Property, (3) Defendants’ intentional failure to disclose various facts, (4) entity Defendants are the alter egos of Kedia, and (5) entity Defendants owed Plaintiff any duty. (Motion at 10:22-11:2) The Court is unpersuaded by the Entity Defendants’ argument.

The key issue is whether the SAC well pleads facts that trigger the Entity Defendants’ duty to disclose. The Court’s prior order found this duty was not adequately alleged in the First Amended Complaint. (RJN Ex. A) *But* the SAC has cured this deficiency through detailed alter ego allegations.

Two requirements must be met to invoke the alter ego doctrine: (1) there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist; and (2) there must be an inequitable result if the acts in question are treated as those of the corporation alone. (See, *Sonora Diamond Corp. v. Super. Ct. (Sonora Union High School Dist.)* (2000) 83 Cal.App.4th 523, 538-539.) To determine whether sufficient unity of interest and ownership exists between two entities, the court considers commingling of assets, identical equitable ownership, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other. (*Ibid.*)

Here, the SAC sets forth ten specific indicia of alter ego in Paragraph 21: Kedia controlling business and affairs of all entity defendants; commingling funds and diverting corporate assets for personal use; disregarding legal formalities; using same offices and employees; using entities as mere shells or conduits; and using entities to shield personal obligations. (SAC ¶ 21) These are well pleaded facts, not mere legal conclusions.

The SAC goes beyond conclusory labels by alleging specific conduct: Kedia’s mother served as nominal incorporator of CIS, STAMP, and BANSI using Kedia’s contact information and OVLG’s address; OVLG served as trustee of the RISTC Trust; the court-appointed Receiver found Kedia controlled GRMTEch, OVLG, and likely other family businesses as master manipulator; emails documented fund flows among OVLG, BANSI, Savant Care, GRMTEch, and NII at Kedia’s direction, including a \$480,000 wire transfer Kedia personally directed; and OVLG’s criminal conviction confirmed Kedia’s de facto control. (SAC ¶¶ 3, 9, 10, 20-22, 28, Ex. A)

The SAC further identifies specific entities Kedia created, specific means of creation, specific mechanisms of control, specific financial transactions reflecting commingling, independent corroboration through the Receiver’s findings and OVLG’s criminal conviction, Kedia’s use of shell corporations to steal community property from

his spouse. (SAC ¶¶ 28-35)

These factual allegations satisfy the pleading standard requiring specific facts showing unity of interest and ownership and an inequitable result. As such, sufficient facts are pleaded to establish Kedia is the alter ego of the Entity Defendants, and thus that his spousal fiduciary duty attaches to the Entity Defendants.

With alter ego establishing duty, the SAC satisfies the remaining elements. Material fact concealed: the true ownership structure of the Properties, specifically that CIS, WAGONFLOW, STAMP, and BANSI were not community property corporations, but entities designed to hold title away from Plaintiff. Intent to defraud: creation of entities specifically to hold title away from Plaintiff, timing of creation (STAMP one day before deed recording, BANSI weeks before closing), and weaponizing CIS to evict Plaintiff. Plaintiff's ignorance: unaware Properties were not titled as community property because Kedia repeatedly assured her they were. Damages: deprivation of ownership interests in all four Properties. (SAC ¶¶ 27, 28, 38, 39, 42, 58, 59, 62.)

Accordingly, the Entity Defendants' Demurrer to Plaintiff's Sixth Cause of Action for Fraudulent Concealment is **OVERRULED**.

C. The Demurrer to the Seventh Cause of Action Against All Defendants for Civil Conspiracy is Overruled.

Defendants collectively demur to the Seventh Cause of Action for Civil Conspiracy by arguing that Plaintiff fails to allege a viable claim because (1) civil conspiracy is a legal doctrine and not a cause of action, (2) Plaintiff fails to allege any facts showing Defendants' involvement in the formation and operation of the conspiracy, (3) Plaintiff fails to allege any facts that Defendants had actual knowledge that a tort was planned. (Motion at 8:22-9:19) Plaintiff responds that the conspiracy claim is tethered to the underlying concealment tort and functions to impose liability on participants in the coordinated scheme. (Opposition at 13:15-26)

Civil conspiracy is a legal doctrine that imposes liability on people who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration. (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 211-212.) "Strictly speaking, . . . there is no separate tort of civil conspiracy, and there is no civil action for conspiracy to commit a recognized tort unless the wrongful act itself is committed and damage results therefrom." (*Mehrtash v. Mehrdash*, (2001) 93 Cal. App. 4th 75, 82.) In other words, standing alone, a conspiracy does not engender tort liability and must be activated by an actual, committed tort. Therefore, for a civil conspiracy claim to survive a demurrer, Plaintiff must allege three core elements: (1) the formation of a group of two or more people who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. (*City of Industry, supra*, 198 Cal.App.4th at 212.)

Plaintiff has tethered her civil conspiracy claim to the underlying fraudulent

concealment claim, which thereby imposes liability on participants in the coordinated scheme. The Court has already ruled above that the underlying fraud claim (i.e., the Sixth Cause of Action) is well pleaded. Likewise, the SAC sufficiently pleads the elements of conspiracy. Plaintiff alleges Defendants acted in concert to perpetrate the fraud – specifically, that they knowingly and willfully conspired and agreed among themselves to fraudulently conceal from Plaintiff that all the properties had been transferred to entities created by Vikas, and that each one of the Defendants affirmatively engaged in conduct to deprive Plaintiff of her community property rights. (SAC ¶¶ 29, 64–65.)

Accordingly, Defendants’ demurrer to the Seventh Cause of Action for Civil Conspiracy is **OVERRULED**.

D. The Demurrer to the Eighth Cause of Action Against Kedia, OVLG, & RISTC Trust for Declaratory Relief is Overruled.

“The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject. The language of Code of Civil Procedure section 1060 appears to allow for an extremely broad scope of an action for declaratory relief: Any person interested under a written instrument ... or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” (*Nede Mgmt. Inc. v. Aspen American Ins. Co.* (2021) 68 Cal.App.5th 1121, 1130; internal citation and quotes omitted) Procedurally, with exceptions, a demurrer must be overruled if an actual controversy is alleged, even if Plaintiff is not entitled to a judgment in his/her favor. (*Id.* at 1132.)

Defendant Kedia demurs to this Eighth Cause of Action for Declaratory Relief by arguing that Plaintiff has failed to plead that declaratory relief would “have any practical consequences.” (Motion at 9:22-27) The Court rejects this argument.

The SAC alleges an actual, present controversy i.e. the parties dispute over the validity of the RISTC Trust. Defendants have allegedly used the RISTC Trust as the vehicle through which STAMP and CIS hold title, and Plaintiff challenges the trust’s legal existence. The SAC alleges nine specific grounds for invalidity, including lack of contemporaneous authentication of signatures, neither grantor nor original trustee being Delaware residents, California law governing title to California real properties, no documentation establishing when assets were transferred, trust formed to hold substantially all of Kedia’s assets, no showing of solvency for asset-protection trust, no provision exempting assets from creditors’ claims, trust created and administered solely for grantor’s benefit by agent or related party trustee, and OVLG serving as trustee. (SAC ¶ 69.) So, as a practical matter, the outcome will determine title to four properties—which is indeed a practical consequence.

Accordingly, Defendants’ Demurrer to Plaintiff’s Eighth Cause of Action for

Declaratory Relief is **OVERRULED**.

E. The Demurrer to the Ninth Cause of Action Against All Defendants for Constructive Trust is Sustained Without Leave To Amend.

The Entity Defendants demur to this cause of action on the grounds that:

- (1) constructive trust is a remedy and not an independent cause of action, and
- (2) Plaintiff has failed to properly plead a fraudulent concealment claim against them.

(Motion at 11:5-22)

The Entity Defendants are right that constructive trust is an equitable remedy, not a substantive claim for relief. “A constructive trust is an involuntary equitable trust created by operation of law as a remedy to compel the transfer of property from the person wrongfully holding it to the rightful owner. The essence of the theory of constructive trust is to prevent unjust enrichment and to prevent a person from taking advantage of his or her own wrongdoing.” (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP*, (2007) 150 Cal. App. 4th 384, 398; internal citations and quotes omitted.)

Plaintiff neither disputes nor even addresses this issue in her Opposition that constructive trust is *not* an independent cause of action but rather a remedy. Failure to address an issue in the memorandum operates as a concession on the merits of that issue. (See California Rules of Court Rule 3.1113(a).

Moreover, because constructive trust is not a cause of action but rather a remedy, there are no facts that Plaintiff could plead in a further amended complaint that would save this claim at the pleading stage. As this claim, on its face, is incapable of amendment to remedy this defect as a matter of law, the Court will not give Plaintiff leave to amend this claim.

Accordingly, Defendants’ Demurrer to Plaintiff’s Ninth Cause of Action for Constructive Trust is **SUSTAINED WITHOUT LEAVE TO AMEND**.

V. Analysis of the Motion to Strike Portions of the SAC

A. The Motion to Strike based on the ground that the SAC is untimely is Denied.

Defendants argue that the SAC should be stricken in its entirety because it was filed forty-eight days after the September 19, 2025 Minute Order that granted twenty days leave to amend, and (2) Plaintiff’s newly added causes of action for breach of contract, civil conspiracy, and declaratory relief exceed the scope of the Court’s leave to amend. Defendants emphasize that the Court’s leave to amend was limited to Plaintiff’s causes of action for fraudulent concealment and constructive trust. (Motion to Strike at 7:19-27)

Defendants' arguments fail. As Plaintiff points out, the Court's Minute Order expressly stated that "The Court will prepare the Order," thus indicating that a separate formal order would follow. (RJN, Ex. A) The Minute Order's language unambiguously indicated that the Court intended to issue a formal written order distinct from the minute order itself. Thus, it is reasonable to conclude that where a minute order expressly contemplates a separate formal order, the procedural deadline tied to that order does not commence until the formal order is entered. And because no formal order was entered, the twenty-day amendment period never commenced. Thus, the SAC filed on November 6, 2025, was timely.

Even assuming *arguendo* that the Minute Order itself triggered the amendment deadline, the Court can and will exercise its broad discretion to consider the late-filed pleading. (See *Keeble v. Brown* (1954) 123 Cal.2d 126, 129 ["The trial court has a wide discretion in the granting of amendments to pleadings."]; see also *Gitmed v. General Motors Corp.* (1994) 26 Cal.App.4th 824, 828 [a court has discretion to strike an amended complaint that is not timely filed after a demurrer is sustained with leave to amend]; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29, 32 ("Rigid rule following is not always consistent with a court's function to see that justice is done."). The extraordinary circumstances here—OVLG's criminal conviction on September 5, 2025, just fourteen days before the Court's ruling, and the extensive trial evidence produced in August and September 2025 establishing Kedia's alter ego relationship with the Entity Defendants—justify the brief delay that Defendant object to here.

Moreover, Defendants have not shown unfair prejudice from the amendment. No trial date has been set, discovery remains in its earliest stages, and the new causes of action arise from the same core facts at issue since the original Complaint was filed in May 2023. Where litigation is at a preliminary stage and claims arise from the same nucleus of operative facts, the court's discretion to permit amendment is at its broadest.

Accordingly, Defendants' Motion to Strike the SAC in its entirety on this ground is **DENIED**.

B. The Motion to Strike the Causes of Action for Breach of Contract, Civil Conspiracy, and Declaratory Relief based on the ground that the SAC exceeds the scope of leave to amend is Denied.

When a demurrer is sustained with leave to amend, the court's order grants permission to the pleader to amend the cause of action to which the demurrer has been sustained rather than giving the plaintiff a license to add any potential cause of action. (See, *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) But to the extent that a new cause of action directly responds to the court's reason for sustaining the earlier demurrer, the new cause of action may be proper. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.)

Here, Defendants argue that Plaintiff's newly added causes of action for breach of contract, civil conspiracy, and declaratory relief exceed the scope of the Court's leave to amend and should be stricken. Defendants emphasize that the Court's leave to amend was

limited to Plaintiff's causes of action for fraudulent concealment and constructive trust. (Motion at 8:2-22)

Defendants' argument fails because the new claims arise from the identical nucleus of operative facts addressed by the Court's prior ruling and were necessitated by evidence that emerged during the criminal trial. The Court sustained the Entity Defendants' demurrer to the First Amended Complaint ("FAC") because the FAC lacked alter ego allegations and failed to establish a duty owed by the Entity Defendants to Plaintiff. (RJN, Ex. A) The Court agrees with Plaintiff that her new claims in the SAC are direct outgrowths of curing those deficiencies. None of these claims introduces a separate dispute; each is a facet of the single scheme alleged since the inception of this litigation.

For instance, the Civil Conspiracy Cause of Action, as noted above, is not a freestanding tort but a legal doctrine imposing liability on persons who share a common plan in perpetrating a tort. It is inextricably linked to the fraudulent concealment cause of action the Court expressly granted leave to amend. The criminal trial evidence showing that OVLG agents managed bank accounts for all Kedia family entities, that funds flowed among entities at Kedia's direction, and that OVLG employees executed intercompany transfers involving STAMP, BANSI, CIS, and other entities supplied the factual basis for alleging that Defendants acted in concert to conceal community property. Pleading this coordinated conduct as a Civil Conspiracy theory of liability was a necessary consequence of curing the alter ego deficiency that the Court had identified.

Likewise, the Declaratory Relief Cause of Action challenging the RISTC Trust's validity flows directly from the Fraudulent Concealment allegations and the alter ego theory. OVLG served as trustee of the RISTC Trust, which owned STAMP and CIS—entities holding two of the four properties at issue. The criminal trial evidence confirmed Kedia's control over the trust and OVLG's role as trustee. A judicial determination of the trust's validity is essential to the concealment and quiet title claims the Court permitted to proceed, because if the trust is invalid, the properties revert to community property status.

Likewise, the Breach of Contract claim under *Marvin* addresses the pre-marriage cohabitation period from September 2009 through July 4, 2013, alleging an implied agreement to pool earnings and share property equally. This claim is integral to Plaintiff's theory that assets acquired during cohabitation were diverted into the same shell entities at issue in the fraudulent concealment claims.

Accordingly, Defendants' Motion to Strike Plaintiff's Causes of Action for Breach of Contract, Civil Conspiracy, Declaratory Relief, and any damages arising therefrom is **DENIED**.

C. The Motion to Strike on multiple grounds the Fifth Cause of Action for Breach of Contract is Denied.

Defendants move to strike the Fifth Cause of Action on multiple grounds, e.g., that it (1) exceeds the scope of the Court's leave to amend, (2) is deficiently pleaded, and (3) is

time-barred. (Motion at 8:25-9:4). In doing so, Defendants incorporate the arguments presented in their Demurrer.

As analyzed in detail in this Order above, the Court rejects each and every one of Defendants' arguments challenging the Fifth Cause of Action at the pleading stage.

Accordingly, Defendants' Motion to Strike Plaintiff's Fifth Cause of Action for Breach of Contract is **DENIED**.

Conclusion & Order

Regarding Defendants' Demurrer to Plaintiff's Second Amended Complaint, the Demurrer is **OVERRULED** in all respects *except* only as to the Ninth Cause of Action for Constructive Trust for which the Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Regarding Defendant's Motion to Strike Plaintiff's Second Amended Complaint, the Motion to Strike is **DENIED** in all respects.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Vidushi Savant v. Vikas Kedia, et al.*

Case No.: 23CV416999

See Line 2 above for complete tentative ruling on both the Demurrer and Motion to Strike.

Line 4

Case Name: *Anna Aleman v. Amazon Logistics, Inc., et al.*

Case No.: 24CV432259

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Anna Aleman moves under Code of Civil Procedure Sections 2030.220(a), 2030.300 *et seq.*, and 2030.300 (a)(1) to compel Defendant R-C Interstate Corp. (“Defendant”) to produce further responses to Plaintiff’s Form Interrogatories, Set One, Numbers 12.3 and 12.6. Notice of Motion (the “Motion”) at 1:26-2:4 (filed: Dec. 4, 2025); Plaintiff’s Separate Statement In Support of Motion at 1:25-10:13. The Motion is brought on the grounds that Defendant has provided meritless objections and evasive and incomplete statements in its responses to Form Interrogatories 12.3 and 12.6 and that Defendant’s responses do not establish a foundation for any privilege. *Id.* at 2:5-7.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served Form Interrogatories 12.3 and 12.6 on Defendant on June 20, 2025. Declaration of Noel D. Hibbard In Support of Motion (“Hibbard Decl.”) at ¶ 5 & Ex. A thereto.

Under California law, Defendant has a clear duty to provide verified Code-Compliant responses to these Form Interrogatories.

To be Code Compliant, Plaintiff’s verified responses for these straightforward Form Interrogatories must comply with Code of Civil Procedure Section 2030.220 by providing answers to each Form Interrogatory that are “as *complete and straightforward* as the information reasonably available” to Defendant permits. C.C.P. § 2030.220 (emphasis added).

To analyze whether Defendant complied with Section 2030.220 by giving a complete and straightforward response to the Judicial Council Form Interrogatory 12.3 and 12.6 at issue here, it is logically necessary to look at precisely what information these straightforward Form Interrogatories ask for.

Judicial Council Form Interrogatory 12.3 asks:

Have YOU or ANYONE ACTING ON YOUR BEHALF *obtained a written or recorded statement* from any individual concerning the INCIDENT? If so, for each statement state:

- (a) The name, ADDRESS, and telephone number of the individual from whom the statement was obtained;
- (b) The name, ADDRESS, and telephone number of the individual who obtained the statement;
- (c) The date the statement was obtained;
- (d) The name, ADDRESS, and telephone number of each PERSON who has the original or copy.

So Form Interrogatory 12.3 asks for a fact—did you obtain the written or recorded statement, Yes or No—plus names, addresses, and dates.

Judicial Council Form Interrogatory 12.6 asks:

Was a report made by any PERSON concerning the INCIDENT? If so state:

- (a) The name, title, identification number, and employer of the PERSON who made the report;
- (b) The date and type of report made;
- (c) The name, ADDRESS, and telephone number of each PERSON for whom the report was made; and
- (d) The name, ADDRESS, and telephone of each PERSON who has the original or copy of the report.

So Form Interrogatory 12.6 asks for a fact—was a report made, Yes or No—plus names, titles, identification number, dates, addresses, and telephone numbers.

The Court has carefully reviewed Defendant’s responses and objections to Form Interrogatories Nos. 12.3 and 12.6, as well as Defendant’s argument in its Opposition papers, and finds them to be as frivolous and evasive and *Non-Code-Compliant* as the undersigned Judge has ever seen in his time on the Bench or in the twenty years that he practiced as a civil litigator in California before taking the Bench.

First, these are *Judicial Council Form Interrogatories*—as simple and straightforward as interrogatories get—and there is nothing whatever “overly broad, unduly burdensome, not reasonably calculated to lead to the discovery of admissible evidence [or] insufficiently specific as to time and scope” about them. Defendant’s use of these boilerplate objections to these Judicial Council Form Interrogatories is shoddy, unprofessional, and unfounded. Do better.

And Defendant’s objection that Form Interrogatories 12.3 and 12.6 ask for attorney-client information and attorney work product is patently false—*read* what these Form Interrogatories actually ask for—and so fares no better. To try to prop up this baseless privilege argument, Defendant in its Opposition papers hurls a series of unremarkable and undisputed red herrings like these:

- “[t]he client has a right to refuse to disclose and prevent another from disclosing, a confidential communication between a client and lawyer”
- “attorney client privilege is absolute and disclosure may not be ordered”
- “[a] corporate client can in fact claim attorney-client privilege” and
- “a court cannot waive attorney client privilege and attorney work product if there is no privilege log provided with interrogatories.”

Opposition at 3:26-4:13. All true. But the glaring problem with Defendant’s argument is that Form Interrogatories 12.3 and 12.6 by their plain text do *not* call for any confidential communication, which is defined by California law as “information transmitted between a client and his or her lawyer in the course of that relationship and in confidence . . . and includes a legal opinion formed and the advice given by the lawyer in the course of that relationship.” Evid. Code § 952. A phone number is not legal advice.

Likewise, Form Interrogatories 12.3 and 12.6 do *not* call for any attorney work product because they do not ask for information that reflects “an attorney’s impression, conclusion, opinions, or legal research or theories[.]” C.C.P. § 2018.030(a). A date is not a legal theory.

And the reason Defendant does not and cannot cite a single analogous case where any California court upheld a claim of attorney-client privilege or attorney work product to avoid responding to Judicial Council Form Interrogatory 12.3 and 12.6 is because no such case exists because Judicial Council Form Interrogatory 12.3 and 12.6 do not call for disclosure of any confidential communication or attorney work product. To belabor the obvious:

- The fact whether Defendant *obtained* a written or recorded statement—Yes or No, which is what Form Interrogatory 12.3 actually asks—is not a confidential communication or an attorneys’ impression, conclusion, opinion, etc., and thus not protected from disclosure based on attorney-client privilege or attorney work product.
- Neither are *names, addresses, or dates* called for in Form Interrogatory 12.3 privileged confidential communications or attorney work product.
- Neither is the fact whether a report was made—Yes or No, which is what Form Interrogatory 12.6 actually asks for—a privileged confidential communication or attorney work product.
- Neither are names, titles, identification numbers, dates, addresses, and telephone numbers called for in Form Interrogatory 12.6 privileged confidential communications or attorney work product.

Hence, Defendant’s attorney-client privilege and attorney work product objections to the information actually asked for in Form Interrogatories 12.3 and 12.6 are unfounded and overruled by this Court. *And* Defendant’s response in the context immediately

following Defendant's baseless privilege objection that Defendant "is not in possession of any responsive *non-privileged* statements" is evasive and non-responsive. Defendant's responses are not complete and straightforward responses to Form Interrogatories 12.3 and 12.6 as Code of Civil Procedure Section 2030.220 requires.

For instance, Plaintiff is entitled to a complete and straightforward answer to the question asked by Form Interrogatory 12.3: Did Defendant obtain a written or recorded statement or not? Yes or no. Form Interrogatory 12.3 does not ask Defendant to disclose any privileged statements or contents *within* the written or recorded statement, so Defendant's privilege objection is evasive and off point.

Moreover, Defendant's argument about whether or not it needs to produce a privilege log now in response to Form Interrogatories 12.3 and 12.6 is evasive and off point because Form Interrogatories 12.3 and 12.6 do not call for any privileged information.

Likewise, Defendant's request that "it not be required to disclose any attorney work product and impressions about the accident" and "not [be required] to disclose any attorney-client communications" is self-serving nonsense because this is a Motion to compel Defendant to provide Code-Compliant responses to Form Interrogatories 12.3 and 12.6 and, as explained above, Form Interrogatories 12.3 and 12.6 do *not* call for disclosure of any confidential communications or attorney work product. So by ordering Defendant to provide further responses that are Code-Compliant to Form Interrogatories 12.3 and 12.6 within 20 days of today—which the Court now **ORDERS**—the Court is not telling Defendant to disclose any attorney-client information or attorney work product.

Which brings us to the issue of sanctions. Under Code of Civil Procedure Sections 2023.010(d) and 2023.030(a), this Court has full authority and broad discretion to impose a monetary sanction against Defendant right now for Plaintiff's reasonable attorneys' fees incurred for bringing this Motion that was fully justified in light of Defendant's refusal to provide complete and straightforward response to Form Interrogatories 12.3 and 12.6. The *only* reason that the Court is not imposing a monetary sanction on Defendant now is because Plaintiff, perhaps as a good-will gesture, did not ask for a monetary sanction in her Motion.

But Defendant should not mistake this generosity and mercy now by the Court as evincing the slightest hesitation of the Court to impose sanctions on Defendant in this case going forward if Defendant either violates this **ORDER** or fails to provide Code-Compliant discovery responses going forward in this case.

Defendant's deliberate evasion here of responding to these most simple and straightforward of discovery requests—*Judicial Council Form Interrogatories* for goodness' sake—is a misuse of the discovery process that Defendant and its counsel would do well never to repeat before the undersigned Judge again.

Conclusion & Order

Accordingly, Plaintiff's Motion is **GRANTED**. Specifically, the Court **ORDERS** Defendant within 20 days of today to provide Plaintiff with complete, straightforward, Code-Compliant further responses to Form Interrogatories 12.3 and 12.6.

Defendant and its counsel are put on **NOTICE** that failure to comply with this **ORDER** by providing Plaintiff with complete, straightforward, Code-Compliant further responses to Form Interrogatories 12.3 and 12.6 within 20 days of today may result in monetary sanctions against Defendant *and* its counsel, plus non-monetary sanctions including issue, evidence, and terminating sanctions.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Elizabeth Dawkins v. Annabelle A. Alday, et al.*

Case No.: 24CV451521

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Annabelle Alday (“Defendant”) moves under Code of Civil Procedure Sections 2023.010, 2023.020, 2030.300(d), and 2033.280:

- (1) to compel Plaintiff Elizabeth Dawkins (“Plaintiff”) to provide verified Code-Compliant responses to Defendant’s Form Interrogatories, Set Two, and Special Interrogatories, Set One;
- (2) to deem all matters specified in the Requests for Admissions, Set One, admitted by Plaintiff; and
- (3) for a monetary sanction against Plaintiff in the amount of \$1,819.17 for Defendant’s reasonable attorneys’ fees incurred for this Motion.

Notice of Motion (the “Motion”) at 1:25-2:4 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On August 28, 2025, Defendant served these Code-Compliant discovery requests on Plaintiff:

- Form Interrogatories, Set Two;
- Special Interrogatories, Set One; and
- Request for Admissions, Set One (“RFAs”).

Declaration of attorney Joshua R. Jachimowicz (the “Jachimowicz Decl.”) In Support of Motion at ¶¶ 4-6 (filed: Dec. 8, 2025).

Under California law, Plaintiff has a clear duty to provide *verified* Code-Compliant responses to these discovery requests. C.C.P. §§ 2030.210, 2030.220, 2033.210, 2033.240, and 2033.250. The deadline for those responses was September 30, 2025.

Despite that clear duty, Plaintiff never provided any responses to the Form Interrogatories, Set Two, and the Special Interrogatories, Set One. Jachimowicz Decl. at ¶ 12.

Regarding the RFAs, while Plaintiff provided an un-verified response to the RFAs

on October 31, 2025, Plaintiff never provided a verified Code-Complaint response to the RFAs despite Plaintiff's clear duty to do so. Jachimowicz Decl at ¶¶7-10 at Exhibits 7 & 8 thereto. Under California law, "[u]nsworn responses are tantamount to no responses at all." *Appleton v. Superior Court*, 206 Cal. App. 3d 632, 636 (1988).

Now, more than nine months after the deadline expired for Plaintiff to respond to these discovery requests, Plaintiff never provided verified Code-Compliant responses to any of them. Jachimowicz Decl at ¶¶7-10, 12.

Hence, because it is undisputed that—

(1) Plaintiff never provided verified Code-Compliant responses to these discovery requests, and

(2) the September 30, 2025 deadline for Plaintiff to respond had long expired,

—it follows as a matter of logic and law that Defendant was justified in filing this Motion against Plaintiff on December 8, 2025, to compel Plaintiff to provide verified Code-Compliant responses to the Form and Special Interrogatories, which the Court will now compel Plaintiff to do within 30 days from today.

Moreover, because Plaintiff failed to provide verified Code-Complaint responses to the RFAs, Defendant in this Motion also seeks an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Plaintiff the truth of all matters specified in the RFAs. C.C.P. § 2033.280(b) & (c).

Moreover, for Plaintiff's misuse of the discovery process under Code of Civil Procedure Section 2023.010(d) by failing to provide verified-Code Compliant responses to these discovery requests, Defendant moves for a monetary sanction against Plaintiff of \$1,819.17 under Code of Civil Procedure Sections 2023.030 for Defendant's reasonable attorneys' fees incurred for bringing this Motion. C.C.P. § 2023.030.

Defendant's request in this Motion for a \$1,819.17 sanction is well supported by the attorney hourly rates and number of attorney hours spent on this Motion, which are well detailed in the Jachimowicz Declaration at ¶¶3, 13, and 14, and which the Court in the broad exercise of its discretion now finds are reasonable in all respects. So Plaintiff will pay Defendant \$1,819.17 as a sanction within 30 days from today.

In sum, the Motion is well supported by the law, well supported by the facts set forth in the Jachimowicz Declaration, and reasonable in all respects.

Plaintiff does not argue otherwise. Indeed, Plaintiff has not opposed this Motion at all, which the Court views as Plaintiff conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be

deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Hence, the Motion is **GRANTED**.

Conclusion & Order

Accordingly, the Court **GRANTS** Defendant’s Motion in its entirety. Specifically, it is hereby **ORDERED that**:

- 1. The truth of each matter specified in the Request for Admissions, Set One, served on Plaintiff Elizabeth Dawkins on August 28, 2025, is now deemed admitted by Plaintiff Elizabeth Dawkins. And**
- 2. Within 30 days from today, Plaintiff Elizabeth Dawkins will provide verified Code-Compliant responses to the Form Interrogatories, Set Two, and the Special Interrogatories, Set One, served on Plaintiff Elizabeth Dawkins on August 28, 2025. And**
- 3. Within 30 days from today, Plaintiff Elizabeth Dawkins will pay \$1,819.17 to Defendant Annabelle Alday as a monetary sanction for Defendant’s reasonable attorneys’ fees incurred for this Motion.**

Moreover, Plaintiff Elizabeth Dawkins is put on **NOTICE** that failure to comply with this Order in all respects within 30 days from today may subject Plaintiff Elizabeth Dawkins to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Jane Doe v. Vivek Paul Gundotra, et al.*

Case No.: 24CV452118

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Vivek Paul Gundotra (“Defendant”) moves to compel Plaintiff Jane Doe (“Plaintiff”) to answer Deposition Questions Nos. 1-8, which Plaintiff did not answer at deposition after her lawyer objected and instructed Plaintiff not to answer them. Notice of Motion (the “Motion”) at 2:4-7 (filed: Dec. 5, 2026). The Motion is made on the grounds that:

- (1) Plaintiff’s responses during her deposition are incomplete;
- (2) Plaintiff’s counsel improperly instructed Plaintiff not to answer;
- (3) Defendant’s interest in the information sought by the questions outweighs Plaintiff’s privacy interest, to the extent that Plaintiff meets the burden of showing a privacy interest exists; and
- (4) Good cause exists to compel discovery under Code of Civil Procedure Sections 2027.010 and 2025.480.

Motion at 2:7-12.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

This is a civil action claiming that Defendant committed conduct against Plaintiff constituting sexual harassment, sexual assault, or sexual battery. Defendant raises a defense of motive—that Plaintiff fabricated her claims after Defendant refused her monetary demands (the “Motive Defense”). Unless barred by privilege or another statutory prohibition established by our Legislature, Defendant here may seek to discover information in support of the Motive Defense because such information is either relevant or reasonably calculated to lead to the discovery of admissible information in this case. *See* Order dated February 2, 2026 at 6:14-7:16; C.C.P. § 2017.010 (broad scope of civil discovery).

To protect important privacy interests of Plaintiff and all parties in this case, the Court on December 8, 2025 signed a Stipulated Protective Order jointly filed by the parties, which among other things authorizes a party to “designate information disclosed during a deposition as ‘Confidential,’” which strictly limits the use of such designated information

“solely for the purpose of this case” and limits disclosure of such designated information only to categories of persons defined and listed in the Stipulated Protective Order such as counsel, expert witnesses, or “a person that the designating party agrees to in writing.” Stipulated Protective Order at ¶¶ 3, 4, 5 (filed by Clerk of Court: Feb. 5, 2026). The Court endorsed this Stipulated Protective Order as it strikes the proper balance, in accordance with bedrock principles of California law enshrined in our Constitution, of protecting the parties’ privacy while enabling parties to discover and use relevant information that will help the trier of fact resolve disputes of fact in civil actions at trial by jury.

Seeking to discover information in support of the Motive Defense, Defendant asked Plaintiff these Deposition Questions Nos. 1-8 at her August 20, 2025 deposition:

- Deposition Question No. 1: “Was there ever an allegation made against you at Revolve?”
- Deposition Question No. 2: “Were you accused of a return scheme at Revolve?”
- Deposition Question No. 3. After noting that Plaintiff was not employed between May 2020 to September 2021, asking: “What was your source of income during that period?”
- Deposition Question No. 4: “How about Damian, was he similarly generous on the level that Vic was in those two years?”
- Deposition Question No. 5. [Directly after asking “Did [Defendant] Gundotra ever pay you for any kind of sex act?” asking:] “Has anyone ever offered to pay you money for sex?”²
- Deposition Question No. 6: “Did you ever ask [Defendant] for money . . . And what were the circumstances of that?”
- Deposition Question No. 7: “Approximately when did you ask [Defendant] for money?”
- Deposition Question No. 8: “How much money did you ask him for?”

Def. Separate Statement In Support of Motion at 2:8-10, 5:7-8, 7:26-28, 10:27-28; 13:7-8, 15:24-25, 18:23-24, 21:20 (citing Deposition Transcript, attached as Ex. D to Declaration of Hillary Weddell In Support of Motion (the “Weddell Decl.”)).

At this deposition, Plaintiff’s counsel instructed Plaintiff not to answer Depositions Questions Nos. 1-8 on the ground that each question violated her “right to privacy.” Def. Separate Statement at 2:14, 5:12, 8:3, 11:4, 13:12, 15:28, 18:26-27, 21:22-23.³

² These two back-to-back questions appear in the August 20, 2025 Deposition Transcript at 177:13-17 (Weddell Decl., Ex. D).

³ While Plaintiff’s counsel also objected on the record to most of these Depositions Questions as “not reasonably calculated to led to the discovery of admissible information,” the Court will reasonably assume that experienced Plaintiff’s counsel did not instruct her client not to answer on *that* basis—as doing so would have been so flagrantly improper and a misuse of the discovery process under Code of Civil Procedure Section 2023.010 as to subject Plaintiff’s counsel to sanctions against her personally. *See Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal. App. 4th 1006, 1014 (“even

After reviewing the Deposition Transcript and attempting in good faith but being unable to resolve with Plaintiff's counsel this discovery dispute, Defendant on December 5, 2025 filed this Motion to compel Plaintiff to answer Deposition Questions Nos. 1-8, along with reasonable follow-up questions in light of Plaintiff's answers to Deposition Questions Nos. 1-8.

In Plaintiff's Opposition papers filed on June 24, 2026, Plaintiff—quite reasonably and appropriately in the view of the Court—withdrew her instruction not to answer to six of eight of these questions, specifically to Deposition Questions Nos. 1, 2, 3, 6, 7, and 8 set forth above. Opp. at 3:17-20 (filed: June 24, 2026). Plaintiff expressly agrees to answer these six deposition questions, subject to the protections of the Stipulated Protective Order. *Id.* The Court will hold Plaintiff to this representation now.⁴

Accordingly, the Motion is **GRANTED IN PART** and Plaintiff is **ORDERED** on July 30, 2026 at 10:00 AM to appear in person to answer Deposition Questions Nos. 1, 2, 3, 6, 7, and 8, along with reasonable follow-up questions in light of Plaintiff's answers to these six deposition questions, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California, which is located less than 5 minutes away (by foot or by car) from this Courthouse where Plaintiff brought this action. And while Plaintiff's counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff's Counsel is **ORDERED** *not* to instruct Plaintiff not to answer these six deposition questions and appropriate follow-up questions to them. Plaintiff will provide truthful, non-evasive answers to these deposition questions on the record.

Which leaves only Deposition Questions Nos. 4 and 5 to resolve, which the Court will address in turn now.

Deposition Question No. 4 is: “How about Damian, was he similarly generous on the level that Vic was in those two years?” The Court agrees with Defendant that this question seeks discoverable information regarding financial motivations and expectations of Plaintiff that is relevant or reasonable likely to lead to the discovery of admissible information for the Motive Defense. Moreover, Plaintiff has failed to show the Court how this discrete

were the questions designed to elicit irrelevant evidence, irrelevance alone is an insufficient ground to justify preventing a witness from answering a question posed at a deposition”). Rather, reading the objections and instructions not to answer at the deposition in the light most favorable to Plaintiff's counsel, and also being sensitive to the fact that the Stipulated Protective Order that the Court signed on December 8, 2025 was not yet operational when this August 20, 2025 deposition was taken, the Court will assume for purposes of resolving this Motion that the only ground asserted at the deposition for Plaintiff not to answer was on the constitutional right to privacy, which *if* established can be proper ground to instruct a witness not to answer at a deposition.

⁴ Plaintiff is correct that Plaintiff may designate this deposition testimony, as appropriate, under the provisions of the Stipulated Protective Order that the Court signed on December 8, 2025, and which is filed on the case docket on February 5, 2026.

question about Damian's relative generosity violates Plaintiff's constitutional right to autonomy privacy. In other words, as Plaintiff's "interests in making intimate personal decisions or conducting personal activities without observation, intrusion, or interference"⁵ are not infringed or violated by information about whether Damian was relatively generous or not, it was improper to instruct Plaintiff not to answer Deposition Question No. 4 based on the constitutional right to autonomy privacy.

Moreover, to the extent that any other privacy interest is implicated by Deposition Question No. 4 or Plaintiff's answer to it, Plaintiff may designate this testimony at her July 30, 2026 deposition as Confidential under the Stipulated Protective Order that is operational in this case. In this way, Defendant will obtain the discoverable information sought while Plaintiff's privacy interests, if any, regarding Deposition Question No. 4 will be protected.

To be clear, at the August 20, 2025 the only two objections to Deposition Question No. 4 made by Plaintiff's counsel were: (1) "I'm going to object to the extent it's not reasonably calculated to lead to the discovery of admissible evidence at the time of trial. [2] Violation of a right to privacy. I'm going to instruct her not to answer." Dep. Tr. at 168:4-7 (Weddell Decl., Ex. D). The Court has now overruled both of those objections above. But in her Opposition brief Plaintiff raises for the first time an objection to Deposition Question No. 4 under Code of Civil Procedure Section 2017.220, which states:

"In any civil action alleging conduct that constitutes sexual harassment, sexual assault, or sexual battery, any party seeking discovery concerning the plaintiff's sexual conduct with individuals other than the alleged perpetrator shall establish specific facts showing that there is good cause for that discovery, and that the matter sought to be discovered is relevant to the subject matter of the action and reasonable calculated to lead to the discovery of admissible evidence. This showing shall be made by a noticed motion[.]"

C.C.P. § 2017.220, cited and argued at Opp. Br. at 5:24-7:18. Particularly given the express and mandatory statutory command of the Legislature that "[t]his showing shall be made by a noticed motion[.]" the Court does not view this objection under Section 2017.220 as being waived by failure to raise it during the deposition.⁶ In other words, if Section 2017.220 applies to the information sought during discovery through Deposition Question No. 4, Defendant would have an affirmative obligation imposed by the plain text of this statute to make a showing of "good cause for that discovery . . . by a noticed motion" *before* seeking to elicit that information. C.C.P. § 2017.220. So even though Plaintiff did not raise the Section 2017.220 objection at the deposition, Plaintiff is allowed to raise it now in Opposition to this Motion to compel.

⁵ *Hill v. National Collegiate Athletic Assn.*, (1994) 7 Cal. 1, 35.

⁶ Moreover, the Court reads this objection as falling within the ambit of Code of Civil Procedure Section 2025.460(c), a type of objection that is "*not* waived by failure to object during the deposition." C.C.P. § 2025.460(c) (emphasis added).

That said, this Section 2017.220 objection is **OVERRULED** as to Deposition Question No. 4 because deposition Question No. 4 does not seek “discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged perpetrator[.]” All this question asks is whether Damian was “similarly generous on the level that Vic was in those two years?” And Plaintiff fails to show how this discrete question about Damian’s relative generosity calls for information about Plaintiff’s sexual conduct with individuals other than Defendant. Hence, Deposition Question No. 4 does not cross that line forbidden by Section 2017.220, and thus is not a ground to stop Plaintiff from answering this question which, as the Court has already ruled above, calls for discoverable, non-privileged information.

Accordingly, the Motion is **GRANTED IN PART** in that in addition to appearing in person and answering Deposition Questions No. 1, 2, 3, 6, 7, and 8, Plaintiff is **FURTHER ORDERED** on July 30, 2026 at 10:00 AM to appear in person also to answer Deposition Question No. 4, along with reasonable follow-up questions in light of Plaintiff’s answers to this deposition question, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California. In asking reasonable follow-up questions to Deposition Question No. 4, defense counsel will *not* ask any questions that cross the line forbidden by Section 2017.220 as explained above. And while Plaintiff’s counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff’s Counsel is **ORDERED** *not* to instruct Plaintiff not to answer Deposition Question No. 4. Plaintiff will provide truthful, non-evasive answers to Deposition Question No. 4 on the record.

Which brings us to Deposition Question No. 5, which Defendant in his Reply brief argues does not “seek information regarding her sexual conduct with persons other than Defendant.” Reply at 6:15-16. But that’s not true in light of the deposition question that defense counsel asked *immediately* before Deposition Question No. 5, as shown in the Deposition Transcript:

MR. ATKINSON: “Did [Defendant] Gundotra ever pay you ***for any kind of sex act?***”

A. No.

[Deposition Question No. 5]: ***Has anyone*** offered to pay you money for sex?

August 20, 2025 Deposition Transcript at 177:13-17 (Weddell Decl., Ex. D) (emphasis added).

Read together, whether defense counsel intended to or not, these back-to-back questions do exactly what Section 2017.220(a) forbids—“seek[] discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged perpetrator”—which Defendant may not do *unless and until* Plaintiff first brings and wins a noticed motion “showing that there is good cause for that discovery[.]” C.C.P. § 2017.2020(a).

Here, by asking if Defendant paid Plaintiff for any kind of sex act, and then immediately asking, well, has anyone else[?], this Deposition Question is reasonably read

by this Court and naturally would be interpreted by the jury at trial as asking about whether Plaintiff engaged in any sex acts for pay with *anyone else* other than Defendant (the alleged perpetrator). And that's what Section 2017.220(a) forbids unless and until Plaintiff brings and wins a motion showing good cause for that discovery.

And while Defendant argues in his Reply brief that the “same record supplies the particularized good cause” (Reply at 8:5-6), the standard set by the Legislature not only that Defendant show good cause for that discovery but also *specifically* that “[t]his showing shall be made by a noticed motion[.]” C.C.P. § 2017.220(a). And it is undisputed that Defendant has not yet brought a Motion under Section 2017.220(a) to establish good cause for this discovery.

In making this ruling, the Court has not yet considered let alone decided whether Defendant could or could not make a showing of good cause for the discovery sought through Deposition Question No. 5. The Court more modestly rules that because—

(a) the information sought by Deposition Question No. 5 falls within the scope of Section 2017.220(a) as the Court finds that it does concern Plaintiff's sexual conduct with individuals other than Defendant,

(b) Section 2017.220(a) expressly requires Defendant seeking such discovery to bring a noticed motion to show good cause for that discovery, and

(c) Defendant has not brought that noticed motion,

—hence, Section 2017.220(a) bars Defendant from asking Deposition Question No. 5 now.

Accordingly, the Court **DENIES IN PART** the Motion insofar as it seeks to compel Plaintiff to answer Deposition Question No. 5 now. This ruling is without prejudice, as Defendant may bring a noticed motion to try to make the showing of good cause for that discovery under Section 2017.220(a). While Defendant may bring that noticed motion, the Court expresses no view on the wisdom of whether Defendant should actually do so to seek this discovery that the Court rules *does* concern Plaintiff's sexual conduct with individuals other than the alleged perpetrator, Defendant Gundotra.

Conclusion & Order

The Motion is **GRANTED IN PART** as follows: Regarding Deposition Questions Nos. 1, 2, 3, 4, 6, 7, and 8 set forth above, Plaintiff is **ORDERED** on July 30, 2026 at 10:00 AM to appear in person to answer Deposition Questions Nos. 1, 2, 3, 4, 6, 7, and 8, along with reasonable follow-up questions in light of Plaintiff's answers to these deposition questions, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California. And while Plaintiff's counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff's Counsel is **ORDERED** *not* to instruct Plaintiff not to answer these deposition questions and appropriate follow-up questions to them. Plaintiff will provide truthful, non-evasive answers to these deposition questions on the record.

The Motion is **DENIED IN PART** as follows: Regarding Deposition Question No. 5, Code of Civil Procedure Section 2017.220(a) bars Defendant from asking that discovery question now unless and until Defendant brings and wins a noticed motion for good cause for that discovery—which Defendant has not done yet.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Jayanthi Rangarajan v. Sutter Law Firm PC, et al.*

Case No.: 25CV457216

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Sutter Law Firm PC, Eric Milliken, and Ian Bennett-Goldberg (“Defendants”) demur to the First Amended Complaint (“FAC”) of Plaintiff Jayanthi Rangarajan under Code of Civil Procedure Sections 430.10(e) & (f) and Section 430.30(a). Notice of Demurrer (the “Demurrer”) at 1:23-27 (filed: Dec. 9, 2025). The grounds for this Demurrer are as follows:

- (1) The FAC is uncertain. C.C.P. § 430.10(f).
- (2) Plaintiff fails to state facts sufficient to constitute a cause of action for professional negligence and breach of contract, and she is unable to plead such facts because they do not exist. C.C.P. § 430.10(e).
- (3) Plaintiff’s claims are barred by the mediation privilege. C.C.P. § 430.30(a).

Demurrer at 2:3-13.

The Demurrer came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On November 6, 2025, after Defendants had demurred and moved to strike the original Complaint, rather than argue the that original Complaint was well pleaded Plaintiff filed the FAC asserting two Causes of Action:

- (1) First Cause of Action for “Professional Negligence” and
- (2) Second Cause of Action for “Breach of Contract.”

FAC at ¶ 8 (listing Causes of Action) & FAC Attachments (filed Nov. 6, 2025).

On December 9, 2025, Defendants filed this Demurrer to the FAC.

Having filed no Opposition, Plaintiff has not opposed this Demurrer to the FAC.

II. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment. *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349. But the California Supreme Court has made clear that “the burden is on plaintiff” to “show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” *Id.* at 349; *see also Hendy v. Losse* (1991) 54 Cal.3d 723, 742 (where demurrer is sustained, the burden is on the plaintiff “to demonstrate the manner in which the complaint might be amended” to cure the pleading defect).

III. Analysis of the Unopposed Demurrer

Regarding First Cause of Action of the FAC for Professional Negligence, Defendants assert that Plaintiffs do not plead any facts “alleging *any* specific breach of the standard of care or even attempt to state or explain what conduct constituted the breach.” Def. Memo. of Points & Authorities in Support of Demurrer at 5:3-4 (“Def. Memo.”). Defendant thus argues that as FAC fails to state facts sufficient to constitute this cause of action, the First Cause of Action fails at the pleading stage under Code of Civil Procedure Section 430.10(e).

Plaintiff does not argue otherwise. Indeed, Plaintiff has not opposed the Demurrer at all, which the Court views as Defendant conceding the Demurrer. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion

may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, Defendants’ Demurrer to the First Cause of Action under Code of Civil Procedure Section 430.10(e) is **SUSTAINED**.

Regarding the Second Cause of Action of the FAC for Breach of Contract, Defendants assert that the FAC does not “plead facts showing an actual breach or causation”—essential elements of any breach of contract claim including this claim which, at bottom, is a legal malpractice claim.. Def. Memo. at 6:26. Defendants argue that the FAC contains only conclusory labels like “coercion and duress” but fails to plead any facts showing “[w]hat was the alleged coercion and duress and when and how did it occur (if at all)? What wishes did Defendants refuse to honor, and were these wishes even legally possible.” Def. Memo. at 7:6-8. Defendant thus argue that as FAC fails to state facts sufficient to constitute this cause of action, the Second Cause of Action fails at the pleading stage under Code of Civil Procedure Section 430.10(e).

The Court agrees with Defendants that at the pleading stage Plaintiff must state “actual facts” to give Defendants notice of what Plaintiffs claims they did wrong or failed to do. And the FAC, even at a high level of generality, fails to do that. It fails to plead facts showing what Defendants did wrong, or what they failed to do, that constitutes a *breach* of contract that *caused* Plaintiff damages.

Plaintiff does not argue otherwise. Indeed, Plaintiff has not opposed the Demurrer at all, which the Court views as Defendant conceding the Demurrer. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, Defendants’ Demurrer to the Second Cause of Action under Code of Civil Procedure Section 430.10(e) is **SUSTAINED**.⁷

Having now Sustained the Demurrer to all Causes of Action of the FAC under Section 430.10(e), the only remaining question is whether the Court should allow Plaintiff to file yet another amendment in a Second Amended Complaint? The answer is No.

First, this is not a case where the Court is analyzing a demurrer to an *original* Complaint where Plaintiff has not yet been given a full and fair opportunity to amend. Rather this is a case where, after having a full and fair opportunity to review Defendants’

⁷ Having sustained the Demurrer to the First and Second Causes of Action under Code of Civil Procedure Section 430.10(e) for failing to plead facts sufficient to constitute a cause of action, the Court need not and does not reach or decide Defendants’ additional arguments that Plaintiff’s claims are barred by the mediation privilege or are uncertain under Section 430.10(f).

arguments on Demurrer to the *original* Complaint—which were largely identical to the arguments now made in Defendants’ Demurrer to the FAC, including that the pleading fails to state facts sufficient to constitute any cause of action—Plaintiff choose to avail herself of the opportunity to remedy the pleading defects by filing this FAC. So having already had and taken advantage of the opportunity to amend her pleading once to *try* to cure its pleading deficiencies, Plaintiff cannot reasonably complain now that she is being treated unfairly by not being given yet another bite at the apple now.

Even more importantly, in the context of analyzing whether leave to amend should be given where a demurrer is sustained, the California Supreme Court has repeatedly held that “the burden is on plaintiff” to “show in what manner [s]he can amend [her] complaint and how that amendment will change the legal effect of [her] pleading.” *Id.* at 349; *see also Hendy v. Losse* (1991) 54 Cal. 3d 723, 742 (where demurrer is sustained, the burden is on the plaintiff “to demonstrate the manner in which the complaint might be amended” to cure the pleading defect). Here, by failing to oppose the Demurrer at all, Plaintiff has not demonstrated at all the manner in which the FAC might be amended to cure its pleading defects. Having failed to carry (or even try to carry) that burden, Plaintiff is not entitled to amend her pleading against now.

Thus, under these circumstances and in the full exercise of its discretion, the Court respectfully *declines* to give Plaintiff leave to amend again now.

Conclusion & Order

Accordingly, Defendants’ Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Moreover, as this Order Sustaining the Demurrer Without Leave to Amend ends this case, Defendants are **ORDERED within 20 days of today to file a Proposed Judgment** in their favor and against Plaintiff.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Kevin Ortega v. Kelly Services Global, LLC, et al.*

Case No.: 26CV490000

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Kelly Services Global, LLC (“Kelly”), Miguel Bobadilla (“Bobadilla”), and Intel Corporation (“Intel”) (collectively, “Defendants”) move under the Federal Arbitration Act (“FAA”), 9 U.S.C. Sections 3 and 4, to compel arbitration of Plaintiff’s claims and to stay this civil action until that arbitration is complete. Notice of Motion (the “Motion”) at 1:4-10 (filed: May 12, 2026).

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

Plaintiff Kevin Ortega (“Plaintiff”) began working at Kelly Services Global, LLC (“Kelly Services”) and Intel Corporation (“Intel”) on September 12, 2022⁸ as a Manufacturing Mask Technician. (Complaint at ¶ 2.) Plaintiff alleges that Defendants are joint employers. (*Id.* at ¶ 11.) On October 11, 2024, Plaintiff informed his supervisor Miguel Bobadilla (“Bobadilla”) that he needed to leave work early because he was sick. (*Id.* at ¶ 13.) On October 31, 2024, Plaintiff informed Bobadilla that he was unable to attend work that day because he was the victim of a robbery and was required to meet with law enforcement. (*Id.* at ¶ 14.) On November 4, 2024, Plaintiff received a subpoena from the District Attorneys’ Office and informed Bobadilla about it the following day. (*Id.* at ¶¶ 15, 16.) Plaintiff attended the court hearing on November 8, 2024. (*Id.* at ¶ 17.) However, Plaintiff was terminated from his employment that same day. (*Id.* at ¶ 18.)

Plaintiff alleges he was wrongfully terminated in retaliation for using sick leave and taking time off to appear in court. (Complaint at ¶ 19.) Plaintiff maintains he has not been compensated with all final wages and that Defendants failed to provide him with legally mandated rest periods. (Complaint at ¶¶ 20, 21.) Plaintiff filed suit on March 23, 2026 and alleges seven causes of action for: (1) retaliation for use of sick leave; (2) retaliation in violation of Labor Code section 230, subdivision (b); (3) wrongful termination in violation of public policy; (4) failure to provide rest breaks; (5) failure to issue accurate and itemized wage statements; (6) failure to pay wages due at separation;

⁸ Defendants maintain Plaintiff was assigned to work for Intel on December 27, 2023 and that he worked there until November 8, 2024. (Declaration of Salah Ali at ¶ 7.)

waiting time penalties; and (7) unlawful business practices in violation of Business & Professions Code section 17200.

In this Motion, Defendants Kelly Services, Intel, and Bobadilla (collectively “Defendants”) now seek to compel arbitration of all claims of Plaintiff because they are all covered by the Dispute Resolution and Mutual Agreement to Binding Arbitration (the “Agreement”) that Plaintiff executed as part of the onboarding process on December 12, 2023. Having reviewed the Agreement and the scope of claims it covers, the Court for reasons it now explains **GRANTS** the Motion to compel arbitration and stay this civil action until the arbitration is complete.

II. Legal Standard

Defendants assert that the Federal Arbitration Act (“FAA”) applies based on the language of the Agreement itself and because their operations affect interstate commerce. Indeed, the Agreement provides that it “shall be governed by the Federal Arbitration Act.” (Declaration of Salah Ali [“Ali Decl.”], Ex. A. at ¶ 4.) Moreover, “employment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

The basic coverage provision of the FAA “makes the law applicable to contracts evidencing a transaction ‘involving commerce’ (9 U.S.C. § 2), which language reflects that Congress intended the law’s coverage to extend to the full reach of its commerce clause power.” (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) Here, Kelly Services connects people with job opportunities and provides companies with staffing solutions across the United States. (Ali Decl. at ¶ 3.) Thus, its operations meet the broad definition of affecting interstate commerce. For these reasons, the Agreement is governed by the FAA.

Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

III. Analysis of the Motion

A. A Valid Agreement to Arbitrate Exists between the Parties.

Defendants have attached a copy of the Agreement with Plaintiff’s name and date printed beneath the signature line. (Ali Decl., Ex. A.) (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [noting that it is a moving party’s burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion].) Plaintiff’s electronic signature has the same legal effect as a handwritten signature—and is express acceptance of an agreement to arbitrate. (*Espejo v. Southern*

California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060; *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) While Plaintiff's signature is missing from the Agreement, "it is not the presence or absence of evidence of a signature which is dispositive, it is the presence or absence of evidence of an agreement to arbitrate which matters." (*Banner Entertainment v. Superior Court* (1988) 62 Cal.App.4th 348, 361.) Plaintiff's printed name on the Agreement may serve as mutual assent to be bound by its terms. The authenticity of an electronic signature may be established by detailing the "security precautions regarding transmission and use of an applicant's unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement." (*Id.* at p. 1062.)

Here, as part of its onboarding process, Kelly Services uses an onboarding system known as OB365 that allows applicants to review, complete, and sign hiring forms digitally. (Ali Decl. at ¶ 4.) The process begins when a Kelly Services representative sends the applicant an email invitation containing login credentials with a link to the system, where the applicant creates a unique password and draws a personal electronic signature. (*Ibid.*) Once logged in, the applicant works through a series of standalone forms acknowledging and signing each before advancing to the next, with the option to save documents and return later. (*Ibid.*) The Agreement is among the forms presented during this process. (*Ibid.*) No documents are submitted to Kelly Services until the applicant completes and electronically signs all required forms, upon which a confirmation email is sent to the applicant. (*Ibid.*)

Records show that a Kelly Services representative manually invited Plaintiff to OB365 via email with instructions, a username, and a link to generate a password to his personal email address that was provided in connection with his application for employment. (Ali Decl. at ¶ 5.) According to these records, Plaintiff completed the onboarding process on December 12, 2023 and applied his electronic signature to each document, *including the Agreement*. (*Id.* at ¶¶ 5, 6.) Hence, the Court finds and rules that Plaintiff's printed name and date, as well as the security precautions undertaken to authenticate Plaintiff's acknowledgment of the Agreement, are sufficient to establish mutual assent to the Agreement here. The procedures described indicate the printed name and date were more likely than not the act of Plaintiff.

To the extent that Plaintiff argues that he does not recall signing the Agreement (Declaration of Kevin Ortega at ¶ 2), "[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that "one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language." (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.) Moreover, the failure to recall signing an agreement does not create a "factual dispute as to the signature's authenticity nor affords an independent basis to find that a contract was not formed." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756, 758.) For these reasons, Plaintiff has not successfully challenged the Agreement's authenticity.

Accordingly, the Court finds and rules that the Agreement is a valid and binding

agreement to arbitrate between the parties in this case.

B. The Scope of the Agreement Covers Plaintiff's Claims

The Agreement applies to “all common-law and statutory claims relating to my employment, including but not limited to any claim for breach of contract, unpaid wages, wrongful termination, and for violation of laws forbidding discrimination, harassment, and retaliation on the basis of race, color, religion, gender, age, national origin, disability, and any other protected status.” (Ali Decl., Ex. A at ¶ 2.) Here, Plaintiff alleges he was wrongfully terminated in retaliation for using sick leave and taking time off to appear in court. He further maintains that he has not been compensated for all final wages and that Defendants failed to provide him with legally mandated rest periods. Plaintiff's claims arise entirely out of his employment and include retaliation, wrongful termination, failure to provide rest breaks, and failure to pay wages. The Court finds and rules that of these claims of Plaintiff squarely fall within the scope of the Agreement.

The Agreement also encompasses all Defendants. The Agreement requires the arbitration of disputes between Plaintiff, Kelly Services and “its related and affiliated companies, any *current and former employee* of Kelly Services, or any related or affiliated company and/or its *clients or customers*.” (Ali Decl., Ex. A at ¶ 1 [emphasis added].) The Agreement further states, “I understand and agree . . . the rights and obligations under this Agreement directly apply to and benefit me and Kelly Services, Inc. and its subsidiaries, regardless of which of those entities signs this Agreement.” (*Ibid.*) Intel is a client/customer of Kelly Services. Bobadilla is an employee of Kelly Services and was Plaintiff's direct supervisor. The plain language of the Agreement contemplates that disputes involving clients like Intel and employees like Bobadilla shall be resolved in arbitration rather than in court.

Although the general rule is that “one must be a party to an arbitration agreement to be bound by it or invoke it,” exceptions like equitable estoppel allow nonsignatories to compel arbitration of a dispute. (*Westra v. Marcus & Millichao Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763; *Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) Under this exception, “a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contractual obligations.” (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271.) Under similar facts in *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782 (*Garcia*), a staffing company, Real Time hired the plaintiff and then assigned him to work for Pexco. *Garcia* held:

On these facts, it is inequitable for the arbitration about Garcia's assignment with Pexco to proceed with Real Time, while preventing Pexco from participating. This is because Garcia's claims against Pexco are rooted in his employment relationship with Real Time, and the governing arbitration agreement expressly includes wage and hour claims. Garcia does not distinguish between Real Time and Pexco in any way. All of Garcia's claims are based on the same facts alleged against Real Time.

Garcia cannot attempt to link Pexco to Real Time to hold it liable for alleged wage and hour claims, while at the same time arguing the arbitration provision only applies to Real Time and not Pexco. Garcia agreed to arbitrate his wage and hour claims against his employer, and Garcia alleges Pexco and Real Time were his joint employers. Because the arbitration agreement controls Garcia's employment, he is equitably estopped from refusing to arbitrate his claims with Pexco.

(*Garica, supra*, 11 Cal.App.5th at pp. 787-788.)

Likewise here, Plaintiff's claims are rooted in his employment with Kelly Services and the arbitration agreement expressly includes wage and hour claims. Plaintiff also does not distinguish between Kelly Services and Intel in any meaningful way. All of Plaintiff's claims against Intel are based on the same facts alleged against Kelly Services and Bobadilla. Plaintiff agreed to arbitrate his wage and hour claims against his employer and alleges that Kelly Services and Intel were joint employers. (Complaint at ¶ 11.) Hence, it would be inequitable, inefficient, and ineffective to allow the arbitration to proceed without Intel or Bobadilla. Plaintiff cannot attempt to link the Defendants for his wage and hour claims but at the same time exclude Intel and Bobadilla from arbitration. Accordingly, Plaintiff is equitably estopped from excluding Intel and Bobadilla from this arbitration. Intel and Bobadilla may equally invoke the Agreement. Thus, the scope of the Agreement not only covers Plaintiff's claims, but it also includes *all Defendants*.

The Court need not and does not reach Defendants' arguments about the lack of unconscionability. "The party opposing arbitration has the burden of proving that the arbitration provision is unconscionable." (*Arguelles-Romero v. Superior Court* (2010) 184 Cal.App.4th 825, 836.) Plaintiff failed to carry that burden and indeed has waived argument about unconscionability by not addressing Defendants' arguments about unconscionability.

Finally, a stay of these proceedings in this civil action is eminently proper under Code of Civil Procedure section 1281.4 and 9 U.S.C. section 3 until this arbitration that Court now **ORDERS** is complete.

Conclusion & Order

Defendants' Motion to compel arbitration is **GRANTED** in all respects. And this civil action is **STAYED** in its entirety pending the outcome of this arbitration.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Case Name: *National Credit Acceptance, Inc. v. Philip Parlan Anima, et al.*

Case No.: 2000-7-CV-401591

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Philip Parlan Anima (“Defendant”) in this Motion invokes the equitable power of the Court under Code of Civil Procedure Section 473(d) to set aside a 25-year-old Judgment that was entered on July 9, 2001.⁹ Defendant says this Judgment should be set aside now as void by making these merits-based arguments 25 years later:

- (1) Defendant never opened or signed for the alleged account;
- (2) The credit application contains a forged signature and incorrect personal information;
- (3) Plaintiff National Credit Acceptance, Inc. (“Plaintiff”) failed to obtain a valid contract with Defendant; and
- (4) Identify theft renders any Judgment void as a matter of law.

Notice of Motion (the “Motion”) at pp. 1-2 (filed: Dec. 5, 2025).¹⁰

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The Motion fails for multiple reasons.

First, while the 6-month time limit to set aside a Judgment under Section 473(b)¹¹ does not apply to this Motion where Defendant invokes the equitable powers of the Court

⁹ On the July 9, 2001 date of the Judgment that Defendant now seeks to set aside, (1) the official case docket of this old case filed in the 2000 shows that this Judgment was entered on July 9, 2001, *and* (2) an Exhibit that Plaintiff himself attached to this Motion confirms this “Judgment entered 07/09/2001.” *See* Verification of Debt Letter from attorney Aimee R. Morris, Esq., attorney for Assignee of Record Sacor Financial, Inc., to Defendant Anima at p. 2 (letter dated: March 19, 2025) (attached to Motion).

¹⁰ As Defendant did not file this Motion on pleading paper, and the paper that Defendant did file this Motion on contains no line numbers, the Court is unable to cite any line numbers in this Order.

¹¹ For a Judgment to be set aside under Section 473(b), the motion “shall be made within a reasonable time, in no case exceeding six months, after the judgment . . . was taken.” C.C.P. § 473(b).

to set aside a void judgment based on extrinsic fraud under Section 473(d), the California Supreme Court instructs that there is still “a strong public policy in favor of the finality of judgments and only in *exceptional circumstances* should be relief be granted” in equity. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 982 (emphasis added). Here, the Court finds no exceptional circumstances whatever in this case that warrant the grant of equitable relief to set aside a 25-year-old Judgment.

Second, since the equitable power of the court is being invoked, the relief sought is subject to equitable defenses, including laches. For instance, in *McCreadie v. Arques* (1967) 248 Cal. App. 39, the court there declined to grant equitable relief to set aside a judgment that was five years old because plaintiff would be prejudiced by having to prove matters five years old if that judgment were set aside. *Id.* at 46-47 (1967). Here, as the Judgment that Defendant Anima seeks to set aside is 25 years old, the prejudice that would be suffered by Plaintiff is (quite literally) exponentially greater than in *McCreadie*. In light of the great prejudice that Plaintiff would suffer if this 25-year-old Judgment were set aside, it is patently unreasonable for Defendant to seek to set aside the July 9, 2001 Judgment at this July 8, 2026 hearing—a 25-year delay. Hence, the equitable defense of laches militates strongly against the Court granting Defendant equitable relief now.

Third, equitable relief under Section 473(d) “is available *only* where the fraud . . . was ‘extrinsic’—meaning the party was denied the opportunity to be heard. If the fraud . . . goes to the merits of the action . . . it is deemed ‘intrinsic’ and *not* ground for relief. Examples of ‘intrinsic’ fraud: forgery, bribery, perjury.” California Practice Guide: Civil Procedure Before Trial at ¶ 5:439 (Weil & Brown, Eds., The Rutter Group, 2025) The reason is because intrinsic fraud like forgery “can be guarded against through diligence *during the proceedings*”—not 25 years later. *Id.* (emphasis added). Here, each and every one of the grounds that Defendant raises to argue that the Judgment is void is intrinsic, going to the merits of the action: (1) he never signed the account, (2) the credit application was forged, (3) Plaintiff never got a contract from him, and (4) there was identify theft here. Motion at p. 2, *supra*. Such intrinsic fraud is “*not* a ground for relief” under Section 473(d). California Practice Guide: Civil Procedure Before Trial at ¶ 5:439 (emphasis in original). And Defendant was never denied the opportunity to be heard on the merits on any of those grounds.

Fourth, even if the grounds for relief asserted by Defendant here could be reconceptualized or reimagined as being extrinsic fraud or mistake (and they are not), and thus eligible for equitable relief under Section 473(d), Defendant has failed to carry his burden of showing that any of those grounds are true. After carefully reviewing all the evidence submitted by Defendant and after giving Defendant the full and fair opportunity to be heard at the July 8, 2026 hearing, the Court finds that that none of them are true. They are false excuses invented decades after the fact to try to unwind, avoid, and evade a valid, long-settled Judgment.

For all these reasons, there would be nothing equitable whatever about setting aside this long-settled 25-year-old Judgment. So, in the broad exercise of its discretion, the Court declines to do so now.

Conclusion & Order

Accordingly, Defendant's Motion is **DENIED** in all respects, with prejudice.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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